

Subject: RE: Claim # 1722960--Clarification of Coverage Scope, Relocation Dates, and Preservation of Evidence
Date: Friday, August 15, 2025 at 8:15:29 AM Central Daylight Time
From: Brochstein, Amye
To: Copeland, Katie

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Katie:

The temporary housing/hotel will be extended until the remediation is completed (dates of anticipated completion are being requested). We will be responding to your email shortly.

Thanks,

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

100 Princeton South Corporate Center, Suite 350 | Ewing, NJ 08626
O: 609.512.4510 | amyebrochstein@phly.com
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From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Thursday, August 14, 2025 7:42 PM
To: Brochstein, Amye <Amye.Brochstein@phly.com>
Subject: Claim # 1722960--Clarification of Coverage Scope, Relocation Dates, and Preservation of Evidence
Importance: High

CAUTION: Be mindful prior to opening non-TMNA attachments and/or links.

Ms. Brochstein,

I need to clarify two points urgently:

1. In your August 6 email, you stated my hotel stay would be extended through August 18. The Nobleman Hotel advised that they were instructed an extension only through tomorrow, August 15, and requested my personal card for incidentals. Please confirm the correct date and whether Weinstein Properties' insurance intends to cover all hotel costs, including incidentals, without shifting the burden to me. I have not been provided a per diem, nor access to suitable

accommodations for my medical conditions,

2. Which of my claims are being defended under your insured's policy, and which do you assert are outside coverage? I need clarity so I can address uncovered claims separately without confusion.

To date, I have not received clear confirmation of the remediation protocol, its approval status, anticipated timeline, or any intent to communicate with me regarding the process. I have not received any updated written notice from your office or the property regarding changes in the hotel stay.

New ADA/FHA Accommodation Request

- **Request:** Immediate relocation to an ADA-compliant residence until a permanent residence is secured, plus financial assistance for moving costs and per diem (\$75/day). This is reasonable under the ADA (42 U.S.C. § 12182) and FHA (42 U.S.C. § 3604(f)), given my medical vulnerabilities and what I have endured so far.
- **Reality:** If Weinstein denies this, it strengthens my ADA/FHA and retaliation claims (especially for not extending my stay and after they removed their credit card from the room and forced me to use mine or be locked out every night), increasing damages significantly.

Please advise what additional information you need to evaluate their policy compliance, particularly regarding maintenance and disclosure. I cannot return until remediation complies with Texas regulations (16 TAC § 78). My prior demands (relocation, medical reimbursement, full remediation) remain unresolved.

For the record, I am issuing a formal spoliation notice covering all records and communications relating to the construction, maintenance, and habitability of Unit 2145, prior tenant complaints, remediation efforts, and communications with agencies such as City of Fort Worth Code Compliance, TDLR, HUD, DOJ, and DSHS.

Please confirm whether you are preserving these records and ensuring your insured is doing the same.

Sincerely,
Katie Copeland
817-789-8498

From: Brochstein, Amye <Amye.Brochstein@phly.com>

Date: Thursday, August 7, 2025 at 10:34 AM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

Subject: RE: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

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Hi Katie,

I spoke with the insured and the hotel is being extended to Monday August 18, 2025.
Please advise if you will be retuning to the apartment at that time or moving somewhere else.

Thanks,

Amye

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From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Wednesday, August 6, 2025 9:08 AM

To: Brochstein, Amye <Amye.Brochstein@phly.com>

Subject: Re: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

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Can you please connect with them about extending my hotel stay? I think it was extended through today, but obviously we're going to need more time to figure out what's next.

Thank you,

Katie Copeland

817-789-8498

On Aug 5, 2025, at 3:12 PM, Brochstein, Amye <Amye.Brochstein@phly.com> wrote:

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Thank you, Ms. Copeland, I will review and respond shortly.

Amye

Amye R. Brochstein, Esq.

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From: Copeland, Katie <K.M.COPELAND@tcu.edu>

Sent: Tuesday, August 5, 2025 1:18 PM

To: Brochstein, Amye <Amye.Brochstein@phly.com>

Subject: Re: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

CAUTION: Be mindful prior to opening non-TMNA attachments and/or links.

Dear Ms. Brochstein,

Thank you for your voicemail and email regarding my claim related to toxic mold exposure at 405 Crawford Street, Apt. 2145.

Attached are the following documents for your review:

1. My June 27, 2025, formal notice of habitability concerns
2. The BioTex mold assessment, which deems the unit uninhabitable and confirms the presence of painted-over mold (indicating the condition existed before my move-in)
3. Supporting photos and maintenance records documenting Weinstein Properties' knowledge of mold beginning in October 2024, and their failure to take appropriate action thereafter

Please let me know if you require any additional documentation to evaluate policy compliance—particularly regarding Texas disclosure laws, failure to mitigate, or potential material misrepresentations during underwriting or claim response.

As someone who formerly worked in insurance adjusting, I'm aware that certain omissions and delays—especially when linked to health risk—can raise significant concerns about compliance and exclusions.

I appreciate your time and look forward to discussing this further.

Warmly,

Katie Copeland

(817) 789-8498

From: Brochstein, Amye <Amye.Brochstein@phly.com>

Date: Monday, August 4, 2025 at 5:22 PM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

Subject: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Hi Ms. Copeland:

Per my voicemail today, I am the claims examiner handling the above matter for Weinstein Properties. They have provided me with information regarding your claim as well as your emails from 7/30 and 8/1 with what you are seeking to settle this matter. We are reviewing all the documentation, including your demands and have requested additional time to do so and respond. Please contact me to discuss.

Thanks,

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

Claims Department
P.O. Box 950
Bala Cynwyd, PA 19004
Email: claimmail@phly.com
(please include last 7-digits of claim # at the end of the subject line)

100 Princeton South Corporate Center, Suite 350 | Ewing, NJ 08628
O: 609.512.4510 | amyebrochstein@phly.com
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Subject: RE: Claim #1722960 – Immediate Housing Needed Pending Completion of Remediation
Date: Monday, November 3, 2025 at 2:02:20 PM Central Standard Time
From: Brochstein, Amye
To: Copeland, Katie
CC: Glynis Zavarelli, Michelle Sortor

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Ms. Copeland:

As your lease expired on October 26, 2025, there is no further obligation for alternative housing as you are no longer a tenant at the Weinstein property. Additionally, as you are not insured under the policy, I cannot provide any information as to the insurance policy or coverage. As you are aware, defense counsel Glynis Zavarelli and Michelle Sorto are Weinstein's counsel in this matter and as such please direct all correspondence to them.

Thanks,

Amye

Amye R. Brochstein, Esq.

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O: 609.512.4510 | amyebrochstein@phly.com
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From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Monday, November 3, 2025 12:03 PM
To: Brochstein, Amye <Amye.Brochstein@phly.com>
Cc: Glynis Zavarelli <gzavarelli@wandzlaw.com>; Michelle Sortor <msortor@wandzlaw.com>
Subject: Claim #1722960 – Immediate Housing Needed Pending Completion of Remediation
Importance: High

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Dear Ms. Brochstein,

I'm following up on your August 15 assurance that *"the temporary housing/hotel will be extended until the remediation is completed."* As of **November 3, 2025**, remediation remains incomplete. The September protocol (Dayna Boor, Dallas Mold Consultants)

contemplates work on **both the unit and the contents**. It appears the company currently holding portions of my contents (**Reign Restoration**) is **not licensed under 16 TAC § 78** to perform mold remediation, and my contents are split across multiple locations. No licensed clearance has been issued for the unit or contents.

Because remediation (including contents) is not complete, I am displaced and need **hotel accommodations reinstated immediately** consistent with your written assurance.

Please confirm by close of business **today**:

1. That temporary housing will be provided effective immediately; and
2. The anticipated dates for licensed contents remediation and final clearance testing.

Finally, please confirm whether **coverage for temporary housing and contents remediation remains active and undisputed**, or if any portion of this claim has been **denied, limited, or reserved under the policy**. If coverage has been restricted in any way, please identify the specific basis and date of that determination so I can address it appropriately.

Given my medical conditions, lapses in safe housing present health risks. Thank you for the prompt written confirmation so I can plan accordingly.

Sincerely,

Katie Copeland

(817) 789-8498

K.M.Copeland@tcu.edu

cc: Counsel for Weinstein Properties (*for awareness only; this correspondence concerns coverage administration and temporary-housing obligations, not litigation strategy or settlement.*)

From: Brochstein, Amye <Amye.Brochstein@phly.com>

Date: Friday, August 15, 2025 at 8:15 AM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

Subject: RE: Claim # 1722960--Clarification of Coverage Scope, Relocation Dates, and Preservation of Evidence

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Date: Thursday, August 7, 2025 at 10:34 AM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

Subject: RE: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

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Hi Katie,

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Please advise if you will be returning to the apartment at that time or moving somewhere else.

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817-789-8498

On Aug 5, 2025, at 3:12 PM, Brochstein, Amye <Amye.Brochstein@phly.com> wrote:

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As someone who formerly worked in insurance adjusting, I'm aware that certain omissions and delays—especially when linked to health risk—can raise significant concerns about compliance and exclusions.

I appreciate your time and look forward to discussing this further.

Warmly,

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(817) 789-8498

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Date: Monday, August 4, 2025 at 5:22 PM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>

Subject: Weinstein Properties - The Bowery at Southside, TX claim # 1722960

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Hi Ms. Copeland:

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Thanks,

Amye

Amye R. Brochstein, Esq.

Senior Claims Specialist
Philadelphia Insurance Companies
A Member of the Tokio Marine Group

Claims Department
P.O. Box 950
Bala Cynwyd, PA 19004
Email: claimmail@phly.com
(please include last 7-digits of claim # at the end of the subject line)

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Subject: Re: Follow-Up on September 8 Mold Assessment Report
Date: Thursday, October 23, 2025 at 12:05:13 PM Central Daylight Time
From: Dayna Boor
To: Katie Copeland
Attachments: Weinstein-090425_Mold_Remediation_Protocol.pdf, Weinstein-090425_Reinspection_Report.pdf, Weinstein-090425_Air_Samples_Full_Lab_Report.pdf, Weinstein-090425_Tape_Lift_Full_Lab_Report.pdf, Weinstein-090425_Entry_Surface_Swab_Sample_Full_Lab_Report.pdf

Katie,

Please see attached reports. The remediation protocol was sent on 9/8. I was not initially made aware of the area by the front door but did go back and do an inspection of that area on 10/17. My swab sample collected by the front door on 10/17 did not find any Stachybotrys or anything unusual. I've attached my re-inspection report of that area. I did suggest that the baseboards and drywall in that area could be removed to further inspect.

For the contents - the remediation protocol calls for the contents to be packed-out of the apartment and cleaned according to EPA guidelines. The contents needed to be moved out so that the remediation company had room to perform a full environmental cleaning on the entire apartment.

I hope this information is helpful to you.

Dayna

On Thu, Oct 23, 2025 at 12:23 AM Katie Copeland <quinnandpoppy@gmail.com> wrote:
Ms. Boor,

I hope you're doing well. I received what appears to be your September 8, 2025 Mold Assessment and Remediation Protocol for Weinstein Properties – Unit 2145, Bowery at Southside.

Could you please confirm that this is your report? If so, would you prefer to provide a cleaner version with all components, including lab results, so I can be sure I'm reading it accurately?

Do your records indicate when and to whom the report was delivered? I assume it was shortly after completion, but I want to make sure I understand the timing correctly.

Your report notes that the client requested the assessment following a water loss from the HVAC condensation drain line affecting the mechanical closet and guest bedroom. Were you provided with or made aware of any prior mold assessments or lab findings from BioTex Inspections in June 2025, particularly results showing Stachybotrys or other toxic mold near the front door?

Finally, does your remediation protocol specify that licensed mold remediation is

required and that contents should not be removed until clearance testing confirms safety? The area of contents cleaning is a bit foreign to me so I want to get an understanding of how my belongings are meant to be handled.

I appreciate your time and professionalism. I'm not asking for confidential opinions—just confirming a few factual details for accuracy.

Sincerely,
Katie Copeland
817-789-8498

From: Katie Copeland <quinnandpoppy@gmail.com>
Date: Thursday, October 2, 2025 at 9:07 PM
To: Dayna Boor <dayna@dallasmoldconsultants.com>
Subject: Re: Mold Assessment and Protocol

Yes, but I will try again.

Sincerely,
Katie Copeland
817-789-8498

From: Dayna Boor <dayna@dallasmoldconsultants.com>
Date: Thursday, October 2, 2025 at 6:03 PM
To: Katie Copeland <quinnandpoppy@gmail.com>
Subject: RE: Mold Assessment and Protocol

Katie,

I can only release reports to the client who hired me. In this case, the property management company. Have you asked them for it?

Dayna

Sent from my T-Mobile 5G Device

----- Original message -----

From: Katie Copeland <quinnandpoppy@gmail.com>
Date: 10/2/25 12:58 PM (GMT-06:00)
To: office@dallasmoldconsultants.com
Subject: Mold Assessment and Protocol

Hello,

I am the tenant at at 220 E. Broadway #2145, Fort Worth, TX 76104.

May I please have a copy of the mold assessment report, lab results, and protocol completed in early September? I am especially curious about the findings of the lab tests on my belongings.

Sincerely,
Katie Copeland
817-789-8498

--

Dayna Boor
Dallas Mold Consultants
www.dallasmoldconsultants.com
972-945-MOLD office
214-606-1330 cell

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Air Exam Chain of Custody

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

Company name		Dallas Mold Consultants				moldlab					
Address		8080 N. Central Expy Ste 1700		City	Dallas	State	TX	ZIP	75206	FM-17 External 10 Line Chain of Custody Form	
Project name		Weinstein- 090425				Submitted By:		Dayna Boor			
Project address		220 E Broadway Ave #2145, Ft. Worth TX				ZIP	76104	Cell phone		214-606-1330	
Project#(optional)		Turnaround Time				Email address:		dayna@dallasmoldconsultants.com			
Sample Date		09/04/2025		3HR	6HR	24HR	48HR	3DAY	5DAY	CC:	

Test Codes	MOLD				ASBESTOS			
	Air Samples		Surface Samples		7. PLM		8. PLM Point Count	
1. Spore Trap: mold only	3. Tape/Swab/Bulk: mold only ratings		9. Tape/Bulk: mold only - μm^3		7. PLM		8. PLM Point Count	
2. Spore Trap: mold & other particle	4. Tape/Swab/Bulk: mold & other particle ratings		10. Tape/Bulk: mold & other particles - μm^3		7. PLM		8. PLM Point Count	

Sample # or ID	Sample Name, Location or Description	Temp	R.H.%	Test code	Time on (applicable to air samples only)	Time off (applicable to air samples only)	Total Vol. (applicable to air samples only)	Sample Type (Bulk, Tape, Swab, Allergenic, etc.)	No. of Containers
1. 090425-01	Guest Bedroom Tape Lift	76	63	3				tape	1
2. 090425-02	HVAC Closet Drivall Tape Lift	76	63	3				tape	1
3. 00010444	HVAC Closet Hallway	76	63	1	11:39am	11:44am	75L	an	1
4. 00010785	Guest Bedroom	76	63	1	11:45am	11:50am	75L	an	1
5. 00010449	Living Room	76	63	1	11:52am	11:57am	75L	an	1
6. 00010704	Master Bedroom	76	63	1	11:58am	12:03pm	75L	an	1
7. 00010650	Outside Baseline	92	43	1	12:05pm	12:10pm	75L	an	1
8.									
9.									
10.									

Payment options	Released by (your signature)	Received Date Stamp:
☐ Invoice to account	☒ [Signature]	Time: 1:15pm
☒ Process credit card on file	Date: 09/04/2025	SEP 04 2025
☐ enclosed check#		BY: [Signature]

Field Notes:
Special Instructions:
Tracking #:

Lab Job # 25-111919 25-111920

Rev. 7, Issue Date: 3/24/2022 2501 Mayes Road, Ste. # 110 | Carrollton, TX 75006 | info@moldlab.com | 1-800-416-6653 Page ___ of ___

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 9/4/2025 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

Page 1 | 1

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



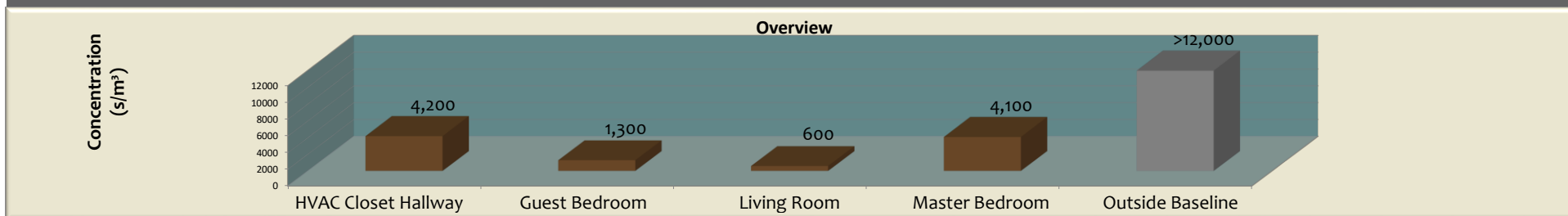
moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

Snapshot

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



This report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ



Location to Reference Comparison

Identification	HVAC Closet Hallway		Guest Bedroom		Living Room		Master Bedroom	
Sample Number	00010444		00010785		00010449		00010704	
Volume (L)	75		75		75		75	
	Raw	s/m³	Raw	s/m³	Raw	s/m³	Raw	s/m³
Alternaria	-	-	-	-	1	43	1	43
Ascospores, non-specified	1	43	1	43	-	-	-	-
Aspergillus/Penicillium-like	71	3,000	12	510	2	85	5	210
Basidiospores, non-specified	-	-	-	-	1	43	-	-
Bipolaris/Dreschslera/Helminthosporium/Exseroh	-	-	1	43	-	-	-	-
Cercospora	-	-	-	-	-	-	1	43
Chaetomium	15	640	7	300	-	-	5	210
Cladosporium	3	130	7	300	7	300	67	2,900
Curvularia	-	-	-	-	-	-	-	-
Fusarium	-	-	-	-	-	-	-	-
Hyphal Fragments	7	300	2	85	1	43	16	680
Myxomycetes/Periconia/Smut/Rust	-	-	-	-	1	43	-	-
Nigrospora	1	43	-	-	1	43	-	-
Pithomyces	-	-	-	-	-	-	-	-
Yeast-like fungi	-	-	-	-	-	-	-	-
Total Fungal Structures	98	4,200	30	1,300	14	600	95	4,100
Non-Microbial Debris Field Rating	Light		Light		Light		Light	

Compares	Outside Baseline	
	00010650	
	75	
	Raw	s/m³
☞	7	300
☞	7	300
☞	30	1,300
☞	12	510
☞	-	-
☞	4	170
☞	-	-
☞	>100	>8,500
☞	2	85
☞	4	170
☞	6	260
☞	2	85
☞	4	170
☞	2	85
☞	2	85
☞	>180	>12,000
	Light	

Submitted By: Dayna Boor | Submittal Date: 9/4/2025 1:13:00 PM | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Analyst: Steven Reese

If a structure is not listed, or listed with a (-), it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of None Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible; instead, any structures detected will be marked as Detected.

Concentrations are rounded to two significant figures. The 'total' field may not add up to sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations. Yellow highlighted concentrations are higher than the reference. Samples received and analyzed by Moldlab, Ltd.

Report

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

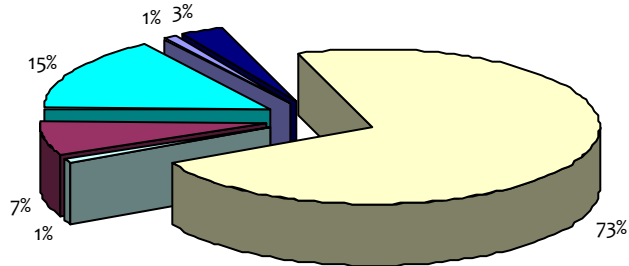
Sample No: 00010444	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:39
Location: HVAC Closet Hallway	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:44

Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*	Identification	Raw Count	Concentration (s/m ³)*	Analytical Sensitivity (s/m ³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	71	3,000	43
Chaetomium	15	640	43	Cladosporium	3	130	43
Nigrospora	1	43	43				
Hyphal Fragments	7	300	43				

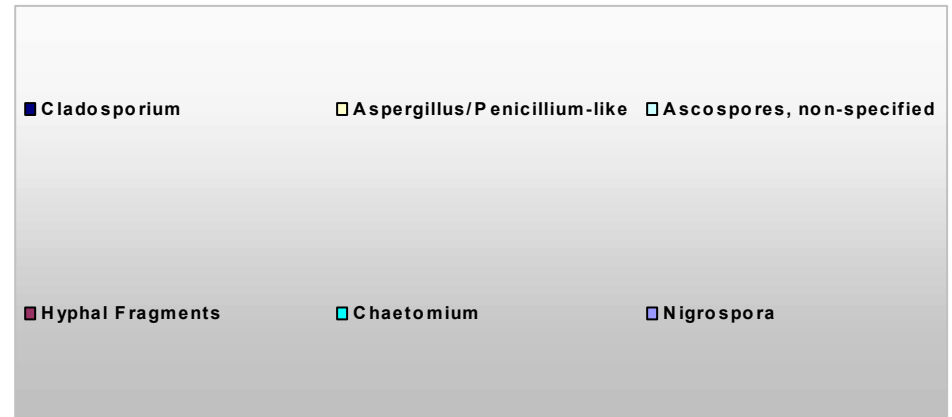
Total Fungal Structures/m³*: 4,200



Non-Microbial Debris Field Rating



Relative Mold Type Concentration

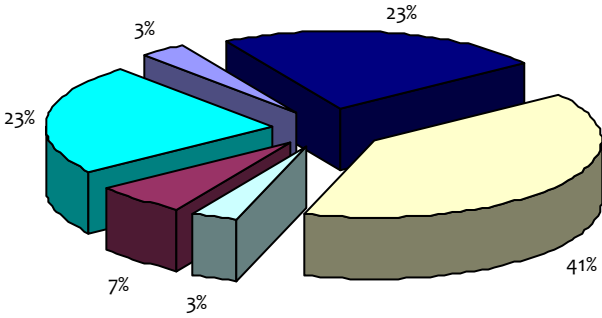


Tech Notes:

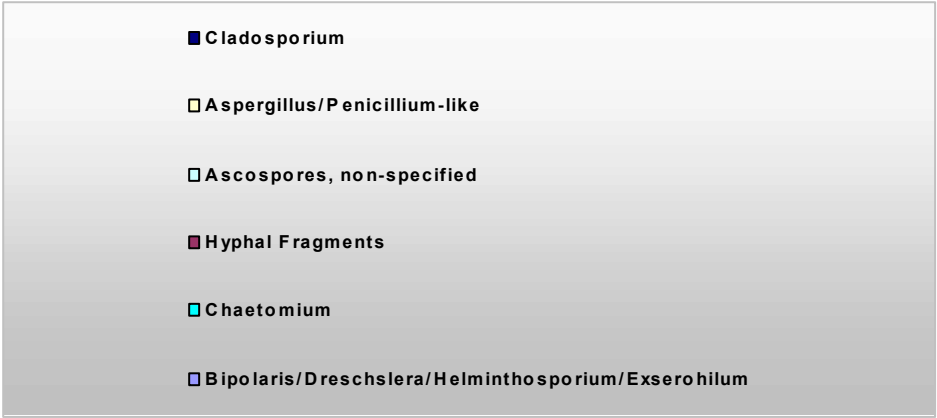
Sample No: 00010785	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:45
Location: Guest Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:50

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Ascospores, non-specified	1	43	43	Aspergillus/Penicillium-like	12	510	43
Bipolaris/Dreschlera/Helminthosporium/	1	43	43	Chaetomium	7	300	43
Cladosporium	7	300	43				
Hyphal Fragments	2	85	43				

Total Fungal Structures/m³*: 1,300



Relative Mold Type Concentration

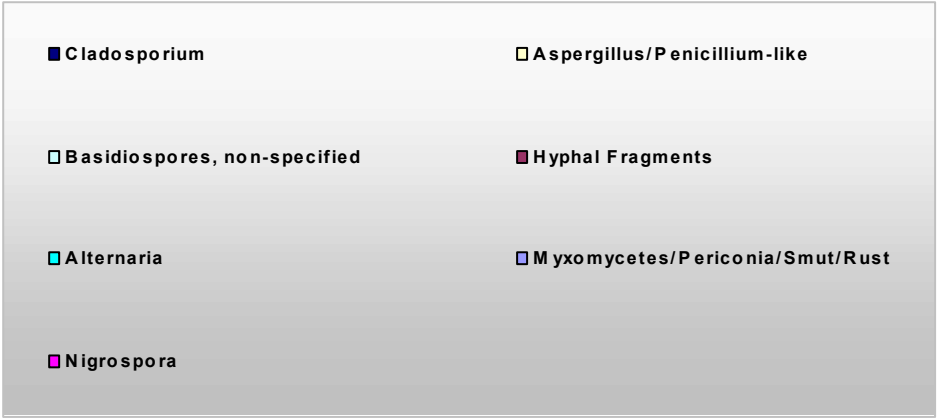
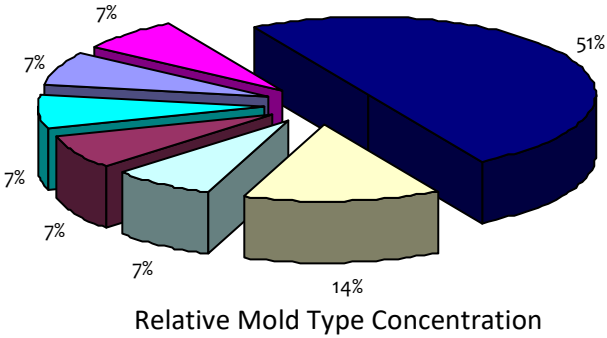


Tech Notes:

Sample No: 00010449	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:52
Location: Living Room	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 11:57

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	2	85	43
Basidiospores, non-specified	1	43	43	Cladosporium	7	300	43
Myxomycetes/Periconia/Smut/Rust	1	43	43	Nigrospora	1	43	43
Hyphal Fragments	1	43	43				

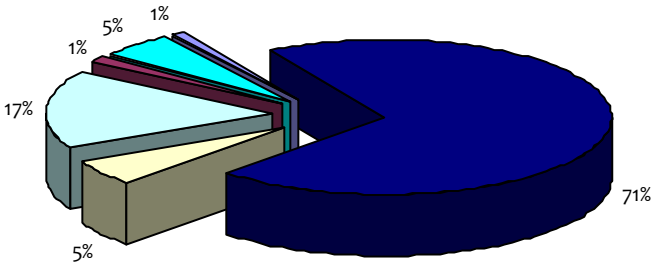
Total Fungal Structures/m³*: 600



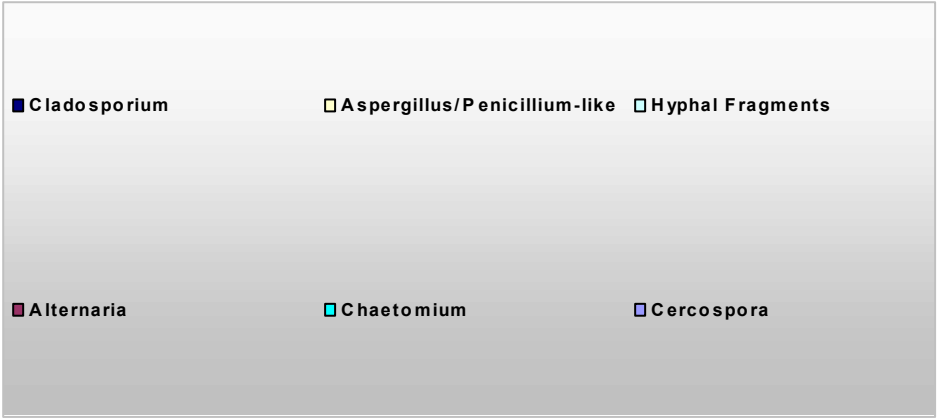
Tech Notes:

Sample No: 00010704	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 11:58
Location: Master Bedroom	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 12:03

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Alternaria	1	43	43	Aspergillus/Penicillium-like	5	210	43
Cercospora	1	43	43	Chaetomium	5	210	43
Cladosporium	67	2,900	43				
Hyphal Fragments	16	680	43				
Total Fungal Structures/m³*:		4,100					



Relative Mold Type Concentration

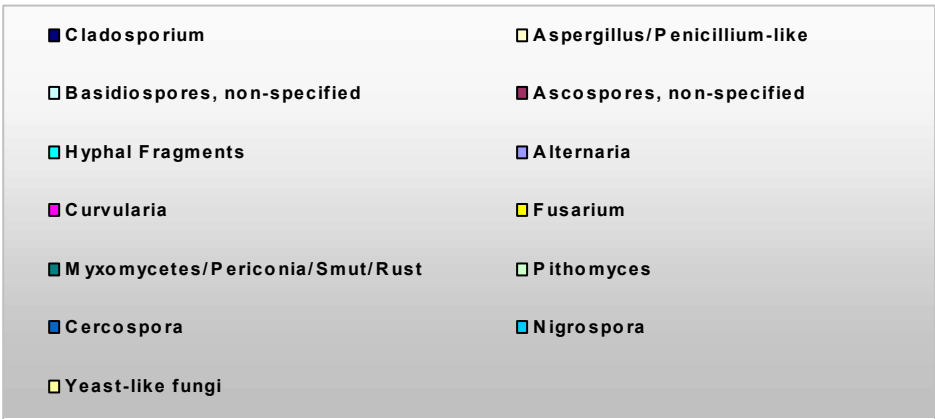
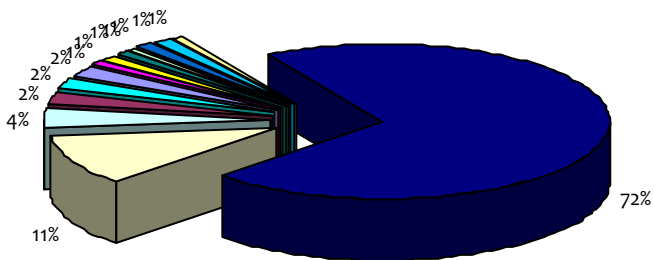


Tech Notes:

Sample No: 00010650	Sample Type: Allergenco D	Analysis Date: 9/5/2025	Sample Start Time: 12:05
Location: Outside Baseline	Volume (L): 75	% Sample Analyzed**: 31.25%	Sample Stop Time: 12:10

Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*	Identification	Raw Count	Concentration (s/m³)*	Analytical Sensitivity (s/m³)*
Alternaria	7	300	43	Ascospores, non-specified	7	300	43
Aspergillus/Penicillium-like	30	1,300	43	Basidiospores, non-specified	12	510	43
Cercospora	4	170	43	Cladosporium	>100	>8,500	85
Curvularia	2	85	43	Fusarium	4	170	43
Myxomycetes/Periconia/Smut/Rust	2	85	43	Nigrospora	4	170	43
Pithomyces	2	85	43	Yeast-like fungi	2	85	43
Hyphal Fragments	6	260	43				

Total Fungal Structures/m³*: >12,000



Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

If a structure is not listed, it was not observed in the sample(s) submitted. Debris rating estimates the total non-fungal particle load on the sample. Ratings of Non Detected, Trace (>0 to 5%), Light (>5% to 25%), Moderate (>25% to 75%), Heavy (>75% to 90%), and Occluded (>90%) are used. A rating of Light or higher may have a higher number of structures present than indicated. The higher the rating, the greater the negative bias. A rating of Occluded makes quantitative results impossible: any structures detected will be marked as Detected. Concentrations are rounded to two significant figures. The 'total' field may not add up to the sum of individual types due to this rounding. The maximum raw count is 100 due to stopping rules. The calculated concentration for a 100 raw count sample will vary depending on the traverse in which the stopping rule was applied. Sample volumes are provided by the customer and impact the validity of structure concentrations.

* s/m³ is structures/m³. A structure is the analyte of interest chosen by the client. **Refers to percent of sample in which structures are enumerated. If you have any questions regarding count rules, please call the lab. Samples received and analyzed by Moldlab, Ltd.

LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782.

flashback

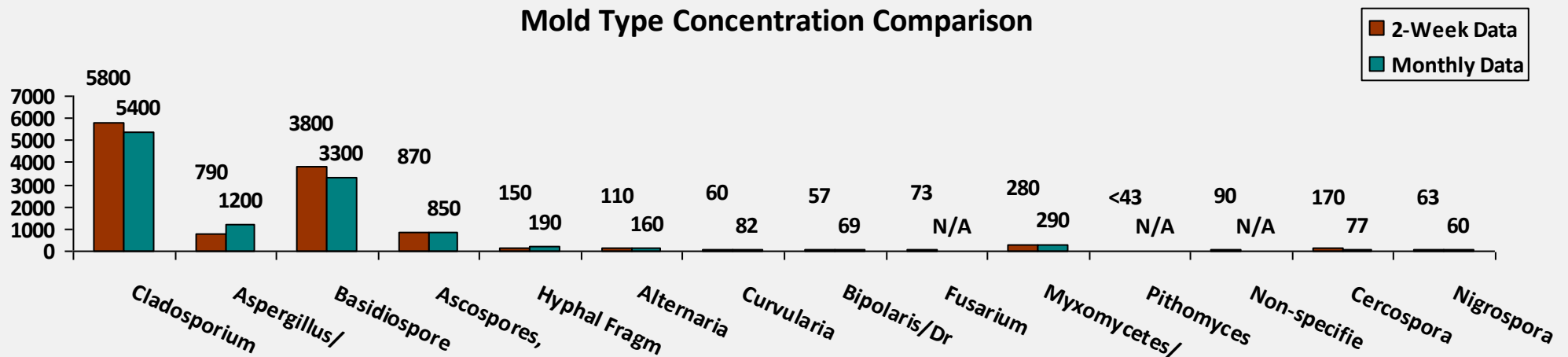
2-Week Average Outdoor Data

Identification	Concentration (s/m ³)
Alternaria	110
Ascospores, non-specified	870
Aspergillus/Penicillium-like	790
Basidiospores, non-specified	3,800
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	57
Cercospora	170
Cladosporium	5,800
Curvularia	60
Fusarium	73
Hyphal Fragments	150
Myxomycetes/Periconia/Smut/Rust	280
Nigrospora	63
Non-specified spore	90
Pithomyces	<43

September Historical Average Outdoor Data

Identification	Concentration (s/m ³)
Alternaria	160
Ascospores, non-specified	850
Aspergillus/Penicillium-like	1,200
Basidiospores, non-specified	3,300
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	69
Cercospora	77
Cladosporium	5,400
Curvularia	82
Hyphal Fragments	190
Myxomycetes/Periconia/Smut/Rust	290
Nigrospora	60

Mold Type Concentration Comparison



Report Date: 9/5/2025 | Sample Date: 9/4/2025

2-Week average Outdoor Data is from 8/21/2025 - 9/4/2025. September Historical Average Outdoor Data is the mean Calculated Concentration for outdoor samples from selected clients from selected zip codes considered by MoldLab to be part of the DFW area. Contact the lab for a complete list of zip codes. Data may not be applicable to areas outside of these zip codes. Outdoor data begins in 2015 and ends in 2024, and is exclusive to the month listed. This report is not intended as a replacement for an outdoor reference sample. Mold types that were not listed in the 2-Week Average Data were not detected, or were detected at a level <22 spores/m³. Mold types that were not listed in the Historical Average Outdoor Data were not detected, or were detected at a level <43 spores/m³. No correction for statistical significance or uncertainty of measurement has been applied. Mold Types listed as "N/A" in the Mold Type Concentration Comparison chart were not detected at a statistically significant level. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein.LAB0137 by the Texas Dept. of Licensing and Regulation.

moldlab

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Toll Free (866) 416-6653
Website - www.moldlab.com

Air Exam Glossary

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



**DALLAS MOLD
CONSULTANTS**
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10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus.

The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition

Images

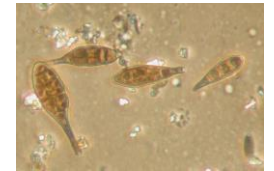
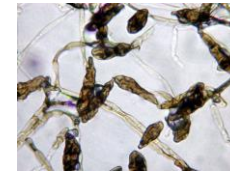
Alternaria (all-tur-nair'ee-uh)

Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely)

Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis.

Macroscopic Morphology: The mold can appear gray / white at first than become greenish / black or brown with a lighter border over time.

Environment: Soil, Plants, Commonly found indoors on food and textiles.



Ascospores, non-specified (ass-co'-spores)

Classification: These are a very large category of spores.

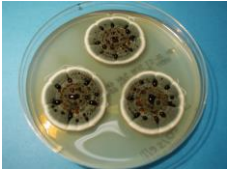
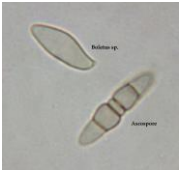
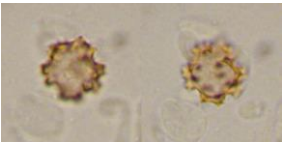
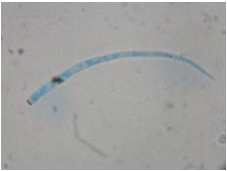
Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans.

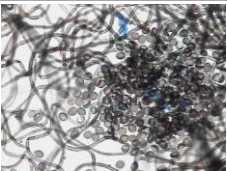
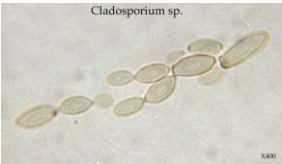
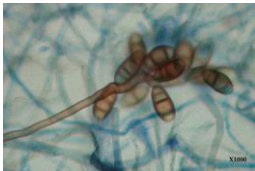
Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood.

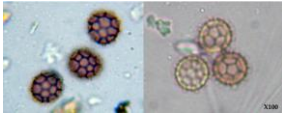
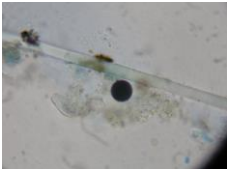
Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of "recyclers". Spores are produced in sac-like structures called asci.



Tech Notes:

Definition	Images	
<u>Aspergillus/Penicillium-like</u> (as-per-jill-us) / (pen-uh-sill'ee-um) Classification: Allergen / Contaminant / Opportunistic Pathogen Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician. Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text. Environment: Commonly found in the environment around the world.	 	
<u>Basidiospores, non-specified</u> (bah-sid-ee-oh'-spores) Classification: Allergen / Contaminant. Another large general class of spores formed on a structure called a basidium, mushrooms belong to this group. Possible Health Effect: Allergen and possible poisoning if certain species are ingested. Macroscopic Morphology: Mushrooms, puffballs and bracket fungi. Environment: This category of spores is found in the outdoor air make up. This is a common cause of Wood Rot. High concentrations in an indoor air sample might be indicative of water damage or too high humidity. Often abundant at night or pre-dawn hours when there is high humidity.	 	
<u>Bipolaris/Dreschlera/Helminthosporium/Exserohilum types</u> (bye-pole-air-us)(dresh-lair'-uh) / Classification: Contaminant / Opportunistic pathogen Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts. Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery. Environment: The fungus is a saprophyte and can be found in soil.	 	
<u>Cercospora group</u> (sir-ko-spore-ra) Classification: Contaminant / Plant Pathogen Possible Health Effect: None found at this time Macroscopic Morphology: reddish-brown to gray-black/wooly Environment: Plants-cause of leaf spot on sugar beets		

Definition		Images	
Chaetomium (kay- toe-me-um) Classification: Contaminant / some report allergen Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer. Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper. Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.		 	
Cladosporium (clad-oh-spore-ee-um) Classification: Common Allergen/ Contaminant Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms. Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance. Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.		 	
Curvularia (curve-you-lair'-ee-uh) Classification: Contaminant / Opportunistic Pathogen Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in Immunocompromised individuals. Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface. Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.		 	
Fusarium (few-sarh-ee-um) Classification: Contaminant / Opportunistic pathogen Possible Health Effect: Associated with eye infections and occasionally skin and nail. Produces a variety of toxins mainly important when ingested particularly through contaminated grain products. Reports of infections in burn victims and compromised hosts. Macroscopic Morphology: It grows quickly and is at first white and cottony but will turn pinkish with age. Environment: Found on fruit and grains and common in soil. Indoors it can sometimes contaminate humidifiers.		 	

Definition		Images	
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A		 	
Myxomycete / Periconia / Smut (mix-oh'-my-seat) / (pare-i-cone-ee-uh) / (smut) Classification: Generally a plant pathogen Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans. Macroscopic Morphology: N/A Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors. <i>*myxomycete is technically not a mold but we have included it in this group due to morphological similarities.</i>			
Nigrospora (nigh-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Woolly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.		 	
Pithomyces (pith-oh-my-cees) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.		 	
Yeast-like fungi Classification: This is a category we assign to spores that have morphological characteristics similar to yeast Examples of yeast like mold are Acremonium and Exophiala		 	

Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

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PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Air Exam FAQ

Test Code 1: Spore Trap -fungal limited
Analysis Method: ASTM Designation D7391-17 (Modified)



**DALLAS MOLD
CONSULTANTS**
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10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover Letter, Snapshot, Report, Flashback, Glossary, and FAQ

How do I know if the air sample results are normal?

The general guideline is that the concentration and types of mold in the inside sample should be similar to or lower than the concentration in the Outside sample. Currently there are no dose response relationship statistics for allowable or safe levels of aeroallergens.

What is the Air Calculated Concentration?

The Calculated Concentration is a measure of the concentration of mold spores in the air, and is listed as spores per cubic meter of air. It is useful for comparing samples and understanding how many spores are in a given section of air. This is calculated based on the air flow rate of the pump, the time the pump was run for, the proportion of the sample enumerated, and the raw count. It is calculated as $((100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time})) * (\text{Raw Count})$. This number is then rounded to two significant figures. The calculated concentration is useful for comparing samples with different volumes, sample types, and counting methods. It is also useful for understanding how many spores there are in a given section of air. If you believe that the air flow rate and pump run time may be incorrect for some or all of your samples, please contact the lab and we can correct this for you.

What is the Raw Count on the report?

The 'raw' count is how many spores the technician actually viewed on your sample while looking through the microscope. We use this number to generate the calculated concentration. Moldlab stops counting spores at 100 and reports the raw count as '>100'.

Can you tell me a little more about mold air samples?

This type of sample is a non-cultured air sample, which means the lab did not grow the samples in a Petri dish, and is commonly referred to as a "snapshot" of the air at the exact time of sampling. The test works by pumping a controlled volume of air through a collection container called a spore trap. The spore trap has a sticky substance on its surface which captures any particles from the air, including mold spores. Test results account for both live and dead spores.

What is the 'debris field rating'?

The 'debris field rating' is a visual estimate made by the technician of how much non-fungal debris there is on the sample. The rating includes all non fungal particulate (fibers, debris, pollen, insects, skin, etc.). The scale includes ratings of 'None Detected', 'Trace', 'Minor', 'Moderate', 'Heavy', and 'Occluded'. None Detected indicates no sample was detected on the sample (possibly due to a bad sample). Trace indicates trace amounts of debris are present. Minor indicates small amounts of debris are present. Moderate indicates an average amount of debris is present. Heavy indicates a high concentration of debris articulate. Lastly, Occluded indicates the amount of particulate on the sample is so concentrated that the technician could not see through it to count and identify spores accurately. The higher the debris rating, the greater the negative bias of results.

What is a 'significant figure'?

Significant figures are used in science to give a better representation of the accuracy of a number. All non-zero digits in a number are significant. Additionally, any digits to the right of a decimal are significant, whether they are zero or not, and all digits in between two non-zero digits are also significant. Significant figures give an understanding of what decimal place a number is accurate to. For example, if 43 is given as 43.0, it is assumed that the "true" value is somewhere between 42.95 and 43.049. If it is given as 43.00, it is assumed the "true" value is somewhere between 42.995 and 43.0049, which is much more precise. Similarly, if 431 is shown as 431, it is assumed that the analysis is accurate to between 430.5 and 431.49, while if it is given as 430, it is only assumed to be accurate to between 425 and 434.9. In this report, all calculated numbers such as the minimum reporting limit and the calculated concentration are rounded to two significant figures. All numbers that were not calculated are given without rounding.

What is the 'minimum reporting limit'?

A minimum reporting limit is exactly what it sounds like- the minimum number that must be reported for the calculated concentration if any spores are detected. This is calculated as $(100/\text{Proportion of Sample Analyzed})/(\text{Air Flow Rate} * \text{Pump Run Time})$. This number is essentially the amount a single spore increases the calculated concentration by. All spore types that are not listed as having a raw count of 1 or greater have a calculated concentration of less than the minimum reporting limit. It cannot be said based upon a raw count of zero that the true concentration of that spore type is 0, however, because the testing procedure is not sufficiently precise. For this reason, the minimum reporting limit gives a useful measure of the minimum detectable concentration of mold types. Bear in mind that any negative bias due to the debris field rating IS NOT accounted for in this minimum reporting limit.

Tech Notes:

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Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111919 | Technician: Steven Reese

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LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.

moldlab

2501 Mayes Rd #110
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Toll Free (866) 416-6653
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam Chain of Custody

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Company name		Dallas Mold Consultants		City		Dallas	State	TX	ZIP	75206
Address		8080 N. Central Expy Ste 1700		City		Dallas	State	TX	ZIP	75206
Project name		Weinstein - 090225		Submitted By:		Dayna Boor		Cell phone		214-606-1330
Project address		220 E Broadway Ave. #2145, Ft Worth, TX		ZIP		76104		Email address:		dayna@dallasmoldconsultants.com
Project#(optional)				Turnaround Time				CC:		
Sample Date		10/17/2025		3HR		6HR	24HR	48HR	3DAY	5DAY
Test Codes		MOLD		ASBESTOS						
Sample # or ID		Sample Name, Location or Description		Temp	R.H.%	Test code	Time on	Time off	Total Vol.	Sample Type
1. 101725-01		Entry Drywall		79	58	3				Swab
2.										
3.										
4.										
5.										
6.										
7.										
8.										
9.										
10.										
Payment options		☐ Invoice to account ☒ Process credit card on file ☐ enclosed check#		Released by (your signature) X Dayna Boor		By signing this document, you certify that these samples were not tampered with while under your care and accept the Moldlab, Ltd Terms of Service, available at Moldlab.com/Terms. Time: 12:30pm Date: 10/17/2025		Received Date Stamp: RECEIVED OCT 17 2025 BY: CH		
Field Notes:										
Special Instructions:										
Tracking #:										
Barcode										
Rev. 7, Issue Date: 3/24/2022		2501 Mayes Road, Ste. # 110 Carrollton, TX 75006 info@moldlab.com 1-866-416-6653								

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 10/17/2025 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

Page 1 | 1

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Approved by:

Kristina Rucker, Lab Director



moldlab
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Toll Free (866) 416-6653
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein - 090225
220 E Broadway Ave. #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Report

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				

Identification

Alternaria
Ascospores, non-specified
Bipolaris/Dreschlera/Helminthosporium/Exserohilum

Rating

	Minor		
	Minor		
	Minor		
	Minor		
	Minor		
	Minor		
	Minor		

Curvularia
Myxomycetes/Periconia/Smut/Rust
Nigrospora
Non-specified spore
Pithomyces
Hyphal Fragments

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

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Website - www.moldlab.com

This test report contains the following sections: Cover, Report, FAQ, and Glossary

What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to *Stachybotrys*. Although *Stachybotrys* is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word *Stachybotrys* or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxigenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 17/10/2025 12:16 | Sample Date: 10/17/2025 | Analysis Date: 10/18/2025 | Report Date: 10/18/2025 | Lab Job No.: 25-113841 | Technician: Deisy Regalado

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This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus. The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

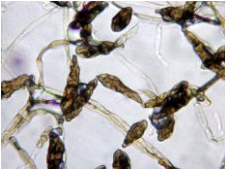
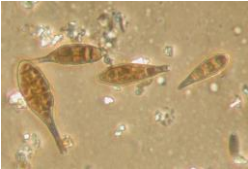
Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

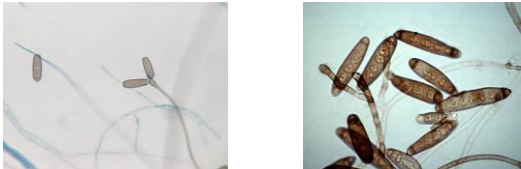
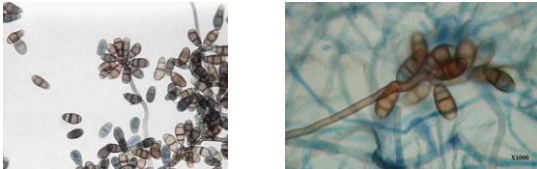
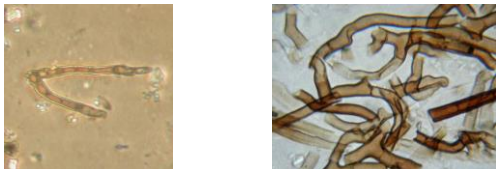
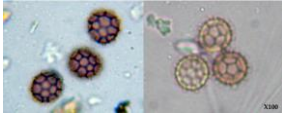
Terminology:

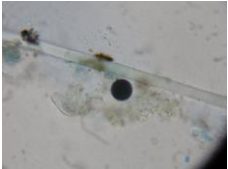
Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.

Contaminant- something that is present without injuring or benefiting the host; does not cause infection.

Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition	Images
Alternaria (all-tur-nair'ee-uh) Classification: Common Allergen / Contaminant / Opportunistic Pathogen (rarely) Possible Health Effect: It is an important allergen and common agent of hay fever, asthma, and other allergy related symptoms, including sinusitis. Macroscopic Morphology: The mold can appear gray / white at first than become greenish / black or brown with a lighter border over time. Environment: Soil, Plants, Commonly found indoors on food and textiles.	 

Definition	Images	
Ascospores, non-specified (ass-co'-spores) Classification: These are a very large category of spores. Possible Health Effect: Because so few of the Ascomycetes will grow in the laboratory setting, very little is known about their health effects on humans. Macroscopic Morphology: Most will appear as specks or spots or bumps on leaves and wood. Environment: Leaves, Wood. Also, most are plant saprophytes playing the role of “recyclers”. Spores are produced in sac-like structures called asci.		
Bipolaris/Dreschlera/Helminthosporium/Exserohilum types (bye-pole-air-us)(dresh-lair'-uh) / Classification: Contaminant / Opportunistic pathogen Possible Health Effect: Allergenic and the most common agent for allergic fungal sinusitis. Various but uncommon infections of the eye, nose, lungs and skin in debilitated hosts. Macroscopic Morphology: The mold will appear brownish / black with a black matted middle and a raised lighter color periphery. Environment: The fungus is a saprophyte and can be found in soil.		
Curvularia (curve-you-lair'-ee-uh) Classification: Contaminant / Opportunistic Pathogen Possible Health Effect: Some sources site it as an allergen. Rare infections of the cornea, nail and sinuses primarily in Immunocompromised individuals. Macroscopic Morphology: The mold appears as olive green to brown or black with a pink wooly surface. Environment: The mold is common in the air and in the soil as a saprophyte and in textiles and decaying vegetation.		
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A		
Myxomycete / Periconia / Smut (mix-oh'-my-seat) / (pare-i-cone-ee-uh) / (smut) Classification: Generally a plant pathogen Possible Health Effect: Generally plant pathogens. Some allergenic properties have been reported but generally pose no health concerns to humans. Macroscopic Morphology: N/A Environment: This group is associated with living and decaying plants as well as decaying wood. Sometimes can be found indoors. <i>*myxomycete is technically not a mold but we have included it in this group due to morphological similarities.</i>		

Definition	Images	
<u>Nigrospora</u> (nigh-grow-spore-uh) Classification: Saprophyte, not known to be pathogenic. Possible Health Effect: Rarely Reported Macroscopic Morphology: Wooly, white then gray with age. Environment: Worldwide in soil, parasitic and saprophytic on plants.	 	
<u>Non-specified spore</u> The spore is NOT Stachybotrys, and could not be identified as any of the other mold types this lab identifies. It may be an unusual mold type that is not identifiable microscopically, or the spore may be damaged. However, the spore was definitively fungal. Classification: N/A Macroscopic Morphology: N/A Environment: N/A		
<u>Pithomyces</u> (pith-oh-my-ceeds) Classification: Contaminant Possible Health Effect: No reports of allergies or infections. Macroscopic Morphology: Light to dark brown and cottony, sometimes showing tufts of distinct fluff in the middle of colony. Environment: Worldwide, soil, plant materials, saprophyte, rarely found indoor, but can grow on paper.	 	

Tech Notes:



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**220 E Broadway Ave. #2145
Ft. Worth, TX 76104**

MOLD REMEDIATION PROTOCOL

**Project No: Weinstein-090225
Inspection Date: 09/02/2025
Remediation Protocol Date:
09/08/2025**

Prepared By:

Dallas Mold Consultants
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Written By:

Dayna Boor

Licensed Mold Assessment Consultant - TDLR # MAC1687, Exp. 02/27/2026
Licensed Mold Remediation Contractor - TDLR # MRC1602, Exp. 04/02/2027

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Section 1.0 Project Background

1.1 Site Description

Building Type: Residential, Multi-Family, Apartment, 1st Floor, Slab Foundation

Age: 2019

Scope: Demolition, Content Cleaning, Environmental Cleaning, HVAC System and Duct Cleaning

1.2 Initial Observations and Findings

Clients requested a mold inspection and remediation protocol write-up after a water loss related to the HVAC condensation drain line caused water damage to the mechanical closet and guest bedroom of this unit.

At the time of inspection the humidity is ~63% Rh and there is visible growth on the inside of the utility closet, behind baseboard in the hallway, and behind baseboard in the guest bedroom behind the utility closet.

The laminate flooring surrounding the area has elevated moisture readings.

Remediation workers put up some containment. There is no equipment on site and no negative pressure on the containment.

Air samples were collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom for comparison with an outdoor air sample.

Tape lift samples were collected from visible growth on the drywall in the hallway and in the guest bedroom for lab analysis.

FINDINGS and RECOMMENDATIONS:

The indoor air samples show contamination with *Aspergillus* and *Chaetomium* mold spores throughout the apartment. *Chaetomium* mold is associated with long-term water damage on building materials.

Due to elevated molds in the air samples, all contents in the apartment should be considered contaminated.

See lab results on next page.

See pictures on pages 12-14.

Recommending mold remediation, content cleaning, environmental cleaning, and HVAC cleaning as outlined in this protocol on **pages 7-11**.

STATE NOTIFICATION

The material to be removed and cleaned is greater than 25 square feet which requires state notification and a 5-day waiting period before remediation can begin. The total of all material removal specified in this protocol is based on areas of visible mold growth, elevated moisture levels, and visible water damaged material observed during the mold inspection performed on 09/02/2025.

Section 1.3

Initial Microbial Sampling Results

Air samples collected using Zefon Bio-Pump with Air-O-Cell cassette at a flow rate of 15 LPM.

Baseline outdoor sample collected and indoor air samples collected in the mechanical closet hallway, guest bedroom, living room, and master bedroom.

Surface tape lift samples collected from visible growth in the hallway and in the guest bedroom behind the baseboards.

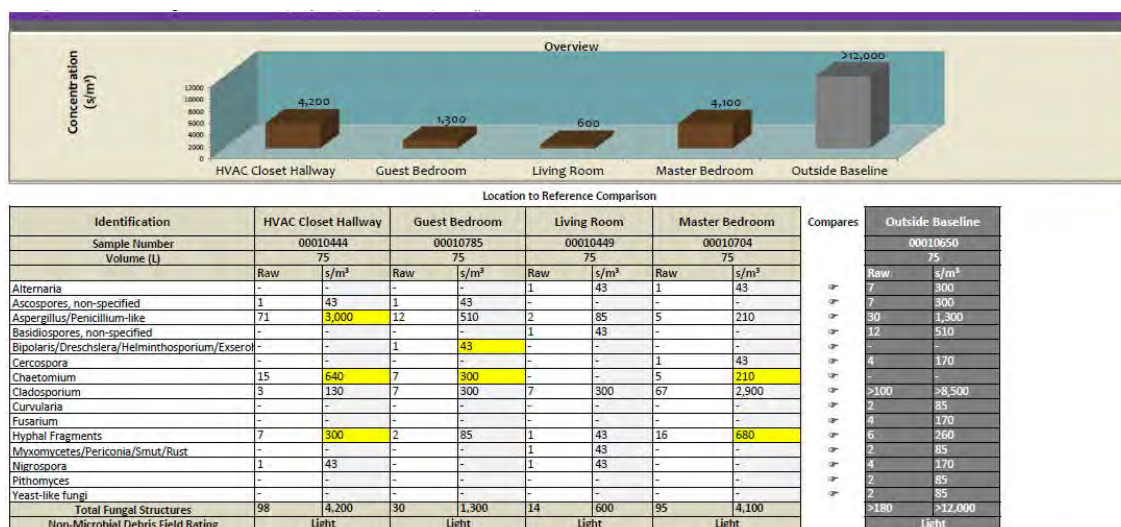
RESULTS: The indoor air samples identified elevated *Aspergillus* mold spores in the mechanical closet hallway and the presence of *Chaetomium* mold spores in the hallway, guest bedroom, and master bedroom air samples.

The tape lift sample from the drywall in the guest bedroom identified a **heavy concentration** of *Chaetomium* mold spores and a **minor concentration** of *Aspergillus* and *Cladosporium* mold spores.

The tape lift sample from the drywall in the utility closet hallway identified a **heavy concentration** of *Chaetomium* mold spores.

See Lab Snapshots below and Full Lab Reports for more information

Air Samples



Surface Tape Lift Samples

Sample No:	090425-01	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	Guest Bedroom Tape Lift				
		Identification	Rating		
		Aspergillus/Penicillium-like	Minor		
		Chaetomium			Heavy
		Cladosporium	Minor		
		Hyphal Fragments			Heavy
Sample No:	090425-02	Analysis Date:	9/5/2025	Sample Type:	Tape /Bio-tape
Location:	HVAC Closet Drywall Tape Lift				
		Identification	Rating		
		Chaetomium			Heavy
		Hyphal Fragments			Heavy

Sample collection and analyses were performed according to Minimum Work Practices and Procedures for Mold Assessment of the Texas Mold Assessment and Remediation Rules. Microbial samples collected by Dallas Mold Consultants are submitted under chain of custody to The Moldlab, a Texas licensed lab (TDSHS license #LAB0137). If samples were collected, full lab report will be sent as a separate attachment.

Section 1.4

Reliance

This protocol is for the exclusive use of the client for the project being discussed. This protocol is not a certificate, assurance, warranty or guarantee of future conditions or performance, but is specific to the conditions present and detected on the date of the mold inspection. This protocol is valid for 60 days from the day it was written.

The Texas Department of Licensing and Regulation regulates mold remediation in the state by administering the Texas Mold Assessors and Remediators Occupations Code and Administrative Rules. Additional information regarding the Texas Mold Program and the state mold statute can be found on their homepage at www.tdlr.texas.gov/mld/mld.htm.

Anyone who believes a company or individual has violated the rules can file a complaint with TDLR. For information on this process, call 1-800-803-9202, or complete the online complaint form.

Texas Department of Licensing and Regulation
Enforcement Division
P.O. Box 12157
Austin, TX 78711
enforcement@tdlr.texas.gov
www.tdlr.texas.gov/complaints

Section 2.0

Regulations and Notices

2.1 Texas Mold Assessment and Remediation Regulations

It is critical that licensed, trained, and qualified mold remediation professionals perform the clean-up work. Mold Remediation should be performed to the standards found in IICRC S520, Standard and Reference Guide for Mold Remediation, and in accordance with the laws of the state of Texas. In accordance with the Texas Mold Assessment and Remediation Rules (Rules), 16 Tex. Admin. Code, Chapter 78, if a licensed Remediation Contractor is doing the mold remediation, a Mold Remediation Protocol is required.

According to the Texas Department of Licensing and Regulation (TDLR) Texas Mold Assessors and Remediators Administrative Rules, state notification is required if more than 25 contiguous square feet of mold contaminated material is affected in any one area. This notification requires a five (5) business day waiting period between the notification date and the remediation start date. This client is encouraged to work with a licensed Mold Remediation Contractor to ensure minimal project disruption and down time should this remediation effort exceed the state mandated limits and have to be registered.

Contaminated materials should be removed using appropriate containment and removal practices in accordance with the TMARR. Proper engineering controls must be in place to prevent the further spreading of airborne mold spores.

2.2 TAHPR - Texas Asbestos Health Protection Rules

The current Texas Asbestos Health Protection Rules require that an asbestos survey be performed by Department of State Health Services licensed persons prior to the commencement of renovation or demolition activities that could disturb asbestos-containing materials within a public building. Materials such as drywall, drywall texture and joint compound, ceiling texture/acoustical materials, flooring materials, ceiling tiles, as well as vinyl flooring products and adhesives can contain asbestos.

2.3 Lead Based Paint

Pre-renovation education requirements:

Firms that perform renovations for compensation in residential houses, apartments, and child-occupied facilities built before 1978 are required to distribute EPA's lead hazard information pamphlet "Renovate Right" before starting renovation work.

The firm must document compliance with this requirement; EPA's pre-renovation disclosure form may be used for this purpose.

Training, certification, and work practice requirements:

Firms are required to be certified, their employees must be trained in the use of lead-safe work practices (either as a certified renovator or on-the-job by a certified renovator), and lead-safe work practices that minimize occupants' exposure to lead hazards must be followed.

Examples of lead-safe work practices include:

Work-area containment to prevent dust and debris from leaving the work area.

Prohibition of certain work practices like open-flame burning and the use of power tools without HEPA exhaust control.

Thorough clean up followed by a verification procedure to minimize exposure to lead-based paint hazards.

Section 3.0 Containments and PPE

Section 3.1 Containment

Pack-out contents for cleaning. Build a single-stage containment around the affected walls in the bedroom, living room, mechanical closet, and hallway. Establish negative pressure using air scrubbers with CLEAN HEPA-rated filters. **Vent outside through a window to remove organic vapors.**

Place air scrubbers outside the containment to clean up contamination from scattered mold spores.

Maintain 4 air changes per hour.

Utilize dehumidifiers to maintain humidity between 30-50% Rh.

Seal HVAC supply vents and/or return air vents in remediation area(s)

Signs advising that a mold remediation project is in progress shall be displayed at all accessible entrances to remediation areas. The signs shall be at least eight 8 inches by ten 10 inches in size and shall bear the words "NOTICE: Mold Remediation Project In Progress" in black on a yellow background. The text of the signs must be legible from a distance of ten 10 feet.

Section 3.2 Personal Protective Equipment (PPE)

Minimum PPE

FULL PPE REQUIRED

Gloves

Disposable Full Body Clothing

Head Gear

Foot Coverings

Full-Face Respirator with HEPA Filter

The remediation contractor shall insure that OSHA appropriate personal protective equipment (PPE) is worn while remediating all containment areas.

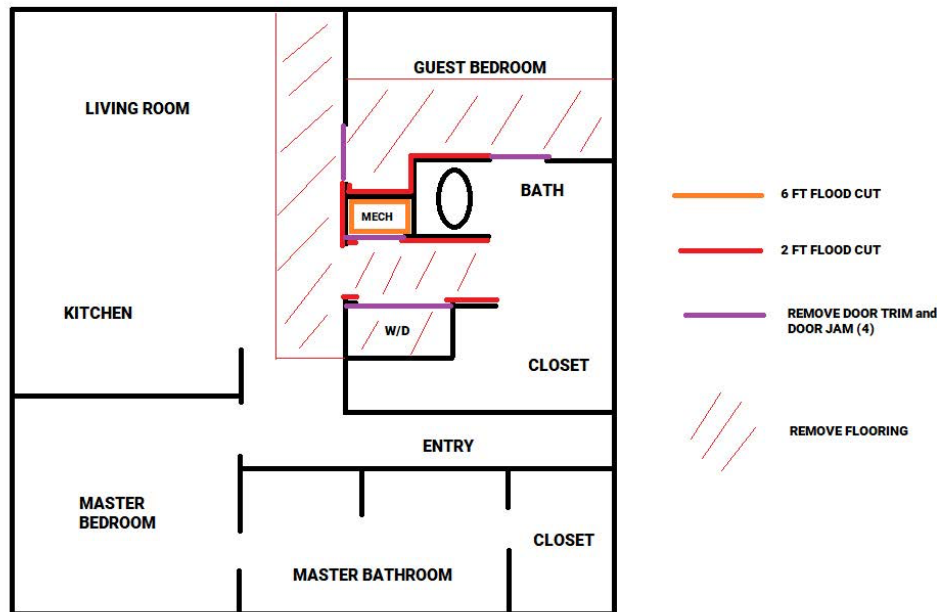
Use professional judgment, consider potential for remediator exposure and size of contaminated area. Contractor assumes all responsibility for PPE compliance.

The EPA Guidelines for Remediation of Building Materials with Mold Growth by Clean Water requirements for PPE should be followed. The complete table is included at the end of this document in U.S. EPA Cleaning Methods, Table 2.

Note: Professional judgment should always play a part in PPE decisions. The EPA guidelines are based on the total surface area contaminated and the potential for remediator and/or occupant exposure, not on the basis of health effects or research showing there is a specific method appropriate at a certain number of square feet. The guidelines have been designed to help construct a remediation plan. The remediation contractor will then use professional judgment and experience to adapt the guidelines to particular situations.

Section 4.0 Specific Remediation Requirements

Section 4.1 Project Diagram



- Follow all Containment Procedures in **Section 3.1**
- Remove door trim and door jams on 4 doors as indicated in PURPLE (W/D, Mechanical, Guest Bedroom, Guest Bathroom)
- Detach HVAC unit and remove platform
- 6 FT flood cut inside mechanical closet as indicated in ORANGE - approx 60 sq ft
- Cut out approx 9 sq ft CEILING in Mechanical Closet
- Remove 16 LF baseboard and 2 ft flood cut walls indicated in RED - approx 68 sq ft
- Remove 6 x 3 laminate flooring and underlayment in hallway
- Remove 3 x 6 laminate flooring and underlayment in W/D area
- Remove approx 11 x 4 section of laminate flooring in living room as indicated
- Remove approx 12 x 4 section of carpet in guest bedroom as indicated
- Follow all Cleaning Procedures in **Section 4.2** on next page

Section 4.0 Specific Remediation Requirements

4.2 Cleaning Procedures

- Follow all Containment Procedures in **Section 3.1**
- **CONTENTS:** Pack-out and clean contents according to **Table 2: EPA Cleanup Methods** at the end of this document. (HEPA vacuum/damp-wipe/steam clean) All washable soft contents (clothing, bedding, etc) should be washed according to manufacturer's instructions.
- **Cleaning Procedures For Demolition:**
 - Remove all insulation and other porous materials in wall cavities and thoroughly HEPA vacuum all dust and debris
 - Clean framing with HEPA vacuum and a grease cutting soap solution or an EPA approved mold cleaning product used according to the manufacturer's instructions. For wood framing, use a sander to remove the top layer of discoloration from the wood and HEPA vacuum all dust.
 - **DO NOT ENCAPSULATE FRAMING WITHOUT APPROVAL FROM THE MAC** -If any framing is not able to be adequately cleaned/sanded to remove mold growth or staining, please text post-cleaning pictures to 972-945-6653.
 - Inspect wall cavities for signs of contamination, hidden water damage and/or mold growth. Semi-porous building materials (framing, studs, joists, sub-floors, etc.) which cannot be adequately cleaned of fungal growth or containing rotten wood should be removed and disposed. If the integrity of any support structure is questionable, it should be replaced. Any materials removed should extend at least 24" past the last signs of water damage or visible mold growth.
 - Dry all wet materials. Wood moisture content should not exceed 15% after cleaning is performed. Air movers and dehumidification equipment should be utilized to dry the structure as needed.
 - HEPA vacuum and damp-wipe all surfaces in the contained area until there is no visible dust or debris
 - Dispose of all mold containing materials in double 6 mil poly and wipe the outside
- **HVAC:** Have a licensed HVAC professional clean the inside of the HVAC unit - coils, blower fans, plenums, etc. Visually inspect supply plenum for visible microbial growth and replace if necessary. Clean HVAC ducting under negative pressure with HEPA filtration. Change all filters and clean registers.
- **ENVIRONMENTAL CLEANING THROUGHOUT ENTIRE UNIT FOLLOWING DEMOLITION:** HEPA vacuum all surfaces. Damp-wipe all horizontal and dust collecting surfaces using a mild detergent solution. HEPA vacuum carpets multiple times in a criss-cross pattern followed by steam cleaning. Dry carpets thoroughly. Place an air scrubber in each bedroom and in the living room/kitchen area.
- *Air wash with fans and allow air scrubbers to run for 48 hours prior to clearance testing*

**The use of EPA registered disinfectants, biocides and antimicrobial coatings may be used; however, if the remediation contractor wishes to use an antimicrobial encapsulant prior to post remediation assessment, the assessment consultant must be contacted for discussion and approval of application areas prior to proceeding. Mold assessment consultant will require visual and/or photo confirmation from the remediation contractor regarding the area(s) in question prior to encapsulation being applied.*

NOTE: The steps outlined here are the minimum steps required for remediation. A remediation contractor may take additional or varied steps as dictated by their judgment and/or operating procedures to adequately abate the mold contamination. However, should significant variance from the above recommendations be required or other issues regarding remediation arise, the remediation contractor should first obtain concurrence from the Mold Assessment Consultant.

Section 5.0

Post Remediation Assessment and Clearance Criteria

Once the remediation has been completed, for the contaminated area(s) to achieve Clearance, a Post Remediation Inspection must be performed along with the collection and analysis of an appropriate number of samples.

Dallas Mold Consultants must be provided with a copy of the Remediation Contractor's Work Plan for the Mold Assessment Consultant to determine whether the remediation has been completed in accordance with this protocol.

Prior to obtaining final clearance the owner/agent must have repaired the underlying cause of the mold, so that it is reasonably certain that the mold will not return from the same cause.

The Mold Assessment Consultant shall perform a visual, procedural, and analytical evaluations in the impacted area(s) to determine whether the remediation has been performed according to the Remediation Protocol provided for this project.

5.1 Visual Inspection

A thorough visual inspection of the containment area(s) or remediation areas will be performed. All areas should be left dry and visibly free of all visible microbial contamination and debris.

Under no circumstances should any encapsulant and primers be applied to any surfaces prior to the Post-Remediation, Inspection and Clearance Testing unless approved by the Mold Assessment Consultant.

Containments must remain in place until Clearance Lab Results.

5.2 Sampling

The sample analysis must reveal no mold growth on any surface sampled and airborne mold counts must be statistically similar to outdoor air for corresponding mold types and total indoor air mold spore concentrations must be generally lower than outdoor mold spore concentrations. IICRC S520 Clearance Standards apply.

1. One air sample from inside each containment or work area where mold was previously detected (one per area).
2. One indoor control air sample from inside the property outside of the containment(s) or work area(s).
3. One to two surface sample(s) per affected area where mold growth was previously observed.
4. At least one outdoor air sample required as a baseline for the Lab.

5.3 Clearance Criteria

The Clearance Investigation and Testing is conducted when mold remediation and cleanup efforts are completed but before containment is removed and renovation activities have begun.

The purpose of the clearance investigation is to ensure that remediation activities have been completed as outlined in the Remediation Protocol, containment has been maintained, all dust and debris have been removed from the containment areas, and no malodors or visible mold is present.

Clearance testing consists of a visual assessment for mold problems in area(s) of remediation activities and the collection/analysis of a tape lift sample and an air quality test in these designated area(s). Clearance is defined as tape and air samples collected indoors being quantitatively equal to or less than outdoor samples, and qualitatively similar. There are no exposure limits for the swab or tape lift sample.

As a general rule acceptable clearance of a containment area is reached when the genus of fungi collected from indoor air are equal to or less than outdoor air. Marker spores such as Chaetomium or Stachybotrys that are measured at more than 2 spores in the air test will result in the area not being cleared. Total average spore counts in the containment area should not exceed 2,000, and a single spore category should not exceed 1,000. In addition, the rank order and type of organism identified may indicate interior contamination and related need for additional action.

If the containment area has dust, debris, breached containment, lack of quality control related to remediation specifications the inspector will not conduct further clearance activities. The client will be informed of observed project deficit concerns for communication with the Mold Remediation Contractor. In addition, if visible mold is present, a tape lift and swab sample is collected for lab analysis.

NOTICE to CLIENT:

Part of the clearance process is ensuring that the source of the problem has been addressed to ensure the problem doesn't reoccur. As the homeowner, you agree to address all sources of water intrusion. Once the restoration/remediation efforts have commenced, you agree and understand that it is NOT SAFE for you to re-enter the contained space until a clearance has been achieved. By doing so you may breach the containment, cross-contaminate the other parts of your home and delay the process. If clearance is not achieved on the first attempt, the contractor will be required to re-clean and let the air scrubbers run for an additional time. After the first clearance test, subsequent clearance inspection costs will be at the restoration contractor's expense, UNLESS it is found that the client has entered and breached the containment area during clearance efforts.

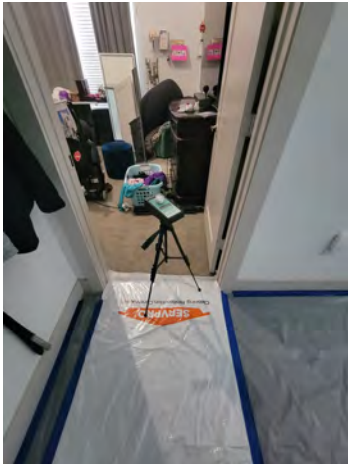
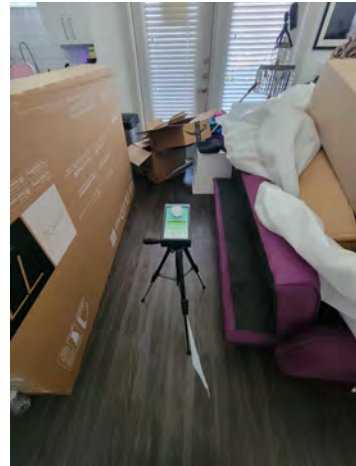
By engaging this project, the contractor also agrees to these terms.

Client's Initials: _____

Section 6.0

6.1 Photographic Documentation

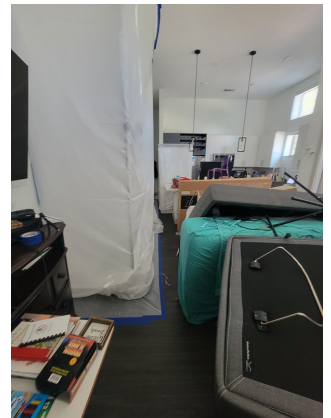
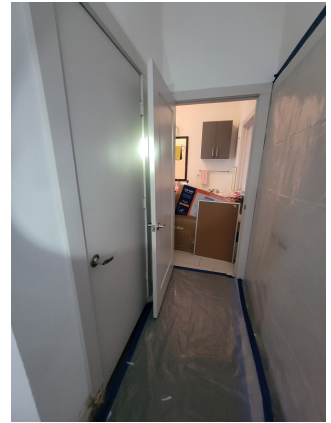
Air Samples - Temperature - Humidity Readings

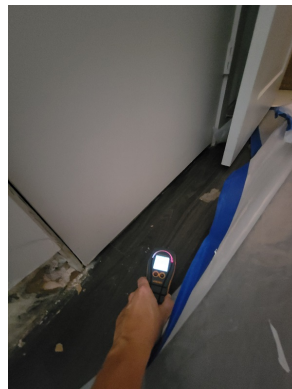
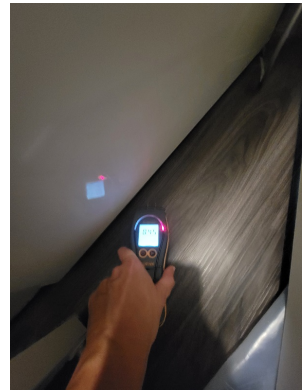
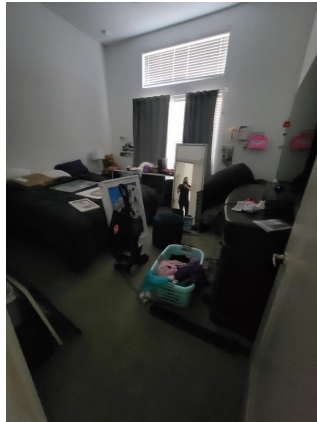


**Guest Bedroom Drywall
Tape Lift Sample**

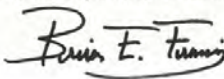
**Utility Hallway Drywall Tape
Lift Sample**

6.1 Photographic Documentation (Continued)





Section 7.0 Credentials

<i>Rick Figueroa</i> Chair		<i>Gerald R. Callas, M.D., F.A.S.A.</i> <i>Nora Castañeda</i> <i>Sujeeth Draksharam</i> <i>Lori High, R.N., N.P., Retired</i> <i>Gary F. Wesson, D.D.S., M.S.</i>
<i>Thomas F. Butler</i> Vice Chair		
<i>Mold Assessment Consultant</i> DAYNA LYN BOOR		
License Number: MAC1687		
The person named above is licensed by the Texas Department of Licensing and Regulation.		
License Expires: February 27, 2026		Brian E. Francis Interim Executive Director

<i>Rick Figueroa</i> Chair		<i>Gerald R. Callas, M.D., F.A.S.A.</i> <i>Nora Castañeda</i> <i>Sujeeth Draksharam</i> <i>Lori High, R.N., N.P., Retired</i> <i>Gary F. Wesson, D.D.S., M.S.</i>
<i>Thomas F. Butler</i> Vice Chair		
<i>Mold Remediation Contractor</i> DAYNA LYN BOOR		
License Number: MRC1602		
The person named above is licensed by the Texas Department of Licensing and Regulation.		
License Expires: April 02, 2027		Courtney Arbour Executive Director

Table 2: Guidelines for Remediating Building Materials with Mold Growth Caused by Clean Water*

Material or Furnishing Affected	Cleanup Methods†	Personal Protective Equipment	Containment
SMALL – Total Surface Area Affected Less Than 10 square feet (ft²)			
Books and papers	3	Minimum N-95 respirator, gloves, and goggles	None required
Carpet and backing	1, 3		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3		
Wallboard (Drywall and gypsum board)	3		
Wood surfaces	1, 2, 3		
MEDIUM – Total Surface Area Affected Between 10 and 100 (ft²)			
Books and papers	3	Limited or Full Use professional judgment, consider potential for remediator exposure and size of contaminated area	Limited Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3		
LARGE – Total Surface Area Affected Greater Than 100 (ft²) or Potential for Increased Occupant or Remediator Exposure During Remediation Estimated to be Significant			
Books and papers	3		Full Use professional judgment, consider potential for remediator/occupant exposure and size of contaminated area
Carpet and backing	1, 3, 4		
Concrete or cinder block	1, 3		
Hard surface, porous flooring (Linoleum, ceramic tile, vinyl)	1, 2, 3, 4		
Non-porous, hard surfaces (Plastics, metals)	1, 2, 3		
Upholstered furniture & drapes	1, 3, 4		
Wallboard (Drywall and gypsum board)	3, 4		
Wood surfaces	1, 2, 3, 4		

EPA Cleanup Methods

Use professional judgment to determine prudent levels of Personal Protective Equipment and containment for each situation, particularly as the remediation site size increases and the potential for exposure and health effects arises. Assess the need for increased Personal Protective Equipment, if, during the remediation more extensive contamination is encountered than was expected. These guidelines are for damage caused by clean water. If you know or suspect that the water source is contaminated with sewage, or chemical or biological pollutants, then the Occupational Safety and Health Administration (OSHA) requires PPE and containment. An experienced professional should be consulted if you and/or your remediator do not have expertise in remediating contaminated water situations. Select method most appropriate to situation. Since molds gradually destroy the things they grow on, if mold growth is not addressed promptly, some items may be damaged such that cleaning will not restore their original appearance. If mold growth is heavy and items are valuable or important, you may wish to consult a restoration/water damage/remediation expert. Please note that these are guidelines; other cleaning methods may be preferred by some professionals.

Cleanup Methods

Method 1: Wet vacuum (in the case of porous materials, some mold spores/fragments will remain in the material but will not grow if the materials is completely dried). Steam cleaning may be an alternative for carpets and some upholstered furniture.

Method 2: Damp-wipe surfaces with plain water or with water and detergent solution (except wood-use wood floor cleaner); scrub as needed.

Method 3: High-efficiency particulate air (HEPA) vacuum after the material has been thoroughly dried. Dispose of the contents of the HEPA vacuum in well-sealed plastic bags.

Method 4: Discard - remove water-damaged materials and seal in plastic bags while inside of containment, if present. Dispose of as normal waste. HEPA vacuum area after it is dried.

Personal Protective Equipment (PPE)

Minimum: Gloves, N-95 respirator, goggle/eye protection

Limited: Gloves, N-95 respirator or half-face respirator with HEPA filter, disposable overalls, goggles/eye protection

Full: Gloves, disposable full body clothing, head gear, foot coverings, full-face respirator with HEPA filter

Containment

Limited: Use polyethylene sheeting ceiling to floor around affected area with a slit entry and covering flap; maintain area under negative pressure with HEPA filtered fan unit. Block supply and return air vents within containment area.

Full: Use two layers of fire-retardant polyethylene sheeting with one airlock chamber. Maintain area under negative pressure with HEPA filtered fan exhausted outside of building. Block supply and return air vents within containment area.



CONSUMER MOLD INFORMATION SHEET



State rules require licensed mold assessors and remediators to give a copy of this Consumer Mold Information Sheet to each client and to the property owner, if not the same person, before starting any mold-related activity [16 TAC 78.70].

How does Texas regulate businesses that do testing for mold or that do mold cleanup?

The Department of Licensing and Regulation (TDLR) regulates such businesses in accordance with the [Texas Occupations Code, Chapter 1958](#). Under the **Texas Mold Assessment and Remediation Rules (rules)** ([16 Tex. Admin. Code, Chapter 78](#)), all companies and individuals who perform mold-related activities in Texas must be licensed by TDLR unless exempt. (See Page 2 regarding owner exemptions.) Individuals must meet certain qualifications, have required training, and pass a state exam and criminal history background check in order to be issued a license. Applicants for a mold remediation worker registration must have training and pass a criminal history background in order to be registered by TDLR. Laboratories that analyze mold samples must also be licensed and meet certain qualifications. The rules set minimum work practices and procedures and also require licensees to follow a code of ethics. To prevent conflicts of interest, the rules also prohibit a licensee from conducting both mold assessment and mold remediation on the same project. While the rules regulate the activities of mold licensees when they are doing mold-related activities, the rules do not require any property owner or occupant to clean up mold or to have it cleaned up.

How can I know if someone is licensed?

A licensed individual is required to carry a current TDLR license certificate with the license number on it. A search tool and listings of currently licensed companies and individuals can be found at: <https://www.tdlr.texas.gov/LicenseSearch/>.

What is “mold assessment?”

Mold assessment is an inspection of a building by a **mold assessment consultant** or **technician** to evaluate whether mold growth is present and to what extent. Samples may be taken to determine the amount and types of mold that are present; however, sampling is not necessary in many cases. When

mold cleanup is necessary a licensed mold assessment consultant can provide you with a **mold remediation protocol**. A protocol must specify the estimated quantities and locations of materials to be remediated, methods to be used and clearance criteria that must be met.

What is meant by “clearance criteria?”

Clearance criteria refer to the level of “cleanliness” that must be achieved by the persons conducting the mold cleanup. It is important to understand and agree with the mold assessment consultant prior to starting the project as to what an acceptable clearance level will be, including what will be acceptable results for any air sampling or surface sampling for mold. There are no national or state standards for a “safe” level of mold. Mold spores are a natural part of the environment and are always present at some level in the air and on surfaces all around us.

What is “mold remediation?”

Mold remediation is the cleanup and removal of mold growth from surfaces and/or contents in a building. It also refers to actions taken to prevent mold from growing back. Licensed **mold remediation contractors** must follow a mold remediation protocol as described above and their own **mold remediation work plan** that provides specific instructions and/or standard operating procedures for how the project will be done.

Before a remediation project can be deemed successful, a mold assessment consultant must conduct a **post-remediation assessment**. This is an inspection to ensure that the work area is free from all visible mold and wood rot, the project was completed in compliance with the remediation protocol and remediation work plan, and that it meets all clearance criteria that were specified in the protocol. The assessment consultant must give you a **passed clearance report** documenting the results of this inspection. If the project fails clearance,

further remediation as prescribed by a consultant will be necessary.

What is a Certificate of Mold Damage Remediation?

No later than the 10th day after a mold remediation project stop date, the remediation contractor must sign and give you a **Certificate of Mold Damage Remediation**. The licensed mold assessment consultant who conducted the post-remediation assessment must also sign the certificate. The consultant must truthfully state on the certificate that the mold contamination identified for the project has been remediated and whether the underlying cause of the mold has been corrected. (That work may involve other types of professional services that are not regulated by the mold rules, such as plumbing or carpentry.) Receiving a certificate documenting that the underlying cause of the mold was remediated is an advantage for a homeowner. It prevents an insurer from making an underwriting decision on the residential property based on previous mold damage or previous claims for mold damage. If you sell your property, the law requires that you provide the buyer a copy of all certificates you have received for that property within the preceding five years.

How is a property owner protected if a mold assessor or remediator does a poor job or damages the property?

The rules require licensees to have commercial general liability insurance in the amount of at least \$1 million, or to be self-insured, to cover any damage to your property. Before hiring anyone, you should ask for proof of such insurance coverage. You may wish to inquire if the company carries additional insurance, such as professional liability/errors and omissions (for consultants) or pollution insurance (for contractors), that would provide additional recourse to you should the company fail to perform properly.

How is my confidentiality protected if I share personal information about myself with a company?

Under the code of ethics in the rules, to the extent required by law, licensees must keep confidential any personal information about a client (including medical conditions) obtained during the course of a mold-related activity. Further, you may be able to negotiate a contract to include language that other personal information be kept confidential unless disclosure "is required by law." However, licensees are required to identify dates and addresses of projects and other details that can become public information.

How do I file a complaint about a company?

Anyone who believes a company or individual has violated the rules can file a complaint with TDLR. For information on this process, call 1-800-803-9202, or complete the online complaint form at <https://www.tdlr.texas.gov/complaints/>.

Can property owners do mold assessment or remediation on their own property without being licensed?

Yes. A homeowner can take samples for mold or clean it up in the home without a license. An owner, or a managing agent or employee of an owner of a residential property is not required to be licensed, **unless** the property has 10 or more residential dwelling units. For non-residential properties, an owner or tenant, or a managing agent or employee of an owner or tenant, is not required to be licensed to do mold assessment or remediation on property owned or leased by the owner or tenant, **unless** the mold contamination affects a total surface area of 25 contiguous square feet or more. Please refer to 16 TAC §78.30 for further details on exceptions and exemptions to licensing requirements.

For more information about mold and the Texas Mold Assessment and Remediation Rules, contact:

Texas Department of Licensing and Regulation

Mold Assessors and Remediators

P.O. Box 12057, Austin, TX 78711

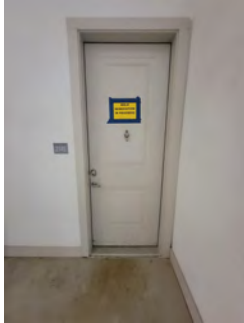
Phone: 512-463-6599 or 800-803-9202

www.tdlr.texas.gov

Re-inspection Report

Project No: Weinstein-090425

Inspection Date: 10/17/2025



**220 E Broadway Ave #2145
Ft. Worth, TX 76104**

Prepared By:

Dallas Mold Consultants
8080 N Central Expressway, Suite 1700
Dallas, TX 75206
972-945-MOLD (6653)
office@dallasmoldconsultants.com

Prepared For:

Weinstein Properties
Pamela Quinn
804.283.4708
pquinn@weinsteinproperties.com

NOTES: Mold testing was requested on an additional area of suspicion by the front door. The paint in the area does have an odd appearance and there is a dark substance that is suspected to be mold.

The drywall does not have elevated moisture readings.

A swab sample was collected from the area which revealed normal fungal ecology. To further rule out water damage and mold growth inside the wall cavity, exploratory measures such as removal of baseboard/door trim and removal of the drywall could be taken.

See pictures and lab snapshot on next page.

Full lab report sent as a separate attachment.

Written By:

A handwritten signature in dark ink, appearing to read "Dayna Boor".

Dayna Boor

Licensed Mold Assessment Consultant - TDLR # MAC1687, Exp. 02/27/2026

Licensed Mold Remediation Contractor - TDLR # MRC1602, Exp. 04/02/2027

Lab Results

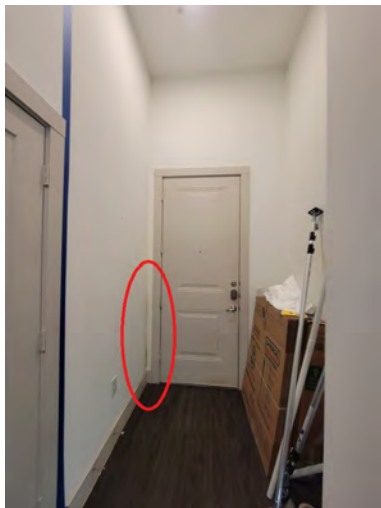
Sample No:	101725-01	Analysis Date:	10/18/2025	Sample Type:	Swab
Location:	Entry Drywall				

Identification	Rating
Alternaria	Minor
Ascospores, non-specified	Minor
Bipolaris/Dreschlera/Helminthosporium/Exserohilum	Minor
Curvularia	Minor
Myxomycetes/Periconia/Smut/Rust	Minor
Nigrospora	Minor
Non-specified spore	Minor
Pithomyces	Minor
Hyphal Fragments	Minor



A surface swab sample collected from this area identified minor concentrations of Alternaria, Ascospores, Bipolaris, Curvularia, Myxomycetes, Nigrospora, and Pithomyces.

These minor concentrations are not indicative of mold growth on the drywall but rather normal fungal ecology on a surface.



DLB

Credentials

Rick Figueroa
Chair

Thomas F. Butler
Vice Chair



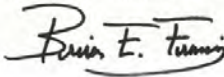
Gerald R. Callas, M.D., F.A.S.A.
Nora Castañeda
Sujeeth Draksharam
Lori High, R.N., N.P., Retired
Gary F. Wesson, D.D.S., M.S.

Mold Assessment Consultant
DAYNA LYN BOOR

License Number: MAC1687

The person named above is licensed by the Texas Department of Licensing and Regulation.

License Expires: February 27, 2026



Brian E. Francis
Interim Executive Director

Rick Figueroa
Chair

Thomas F. Butler
Vice Chair



Gerald R. Callas, M.D., F.A.S.A.
Nora Castañeda
Sujeeth Draksharam
Lori High, R.N., N.P., Retired
Gary F. Wesson, D.D.S., M.S.

Mold Remediation Contractor
DAYNA LYN BOOR

License Number: MRC1602

The person named above is licensed by the Texas Department of Licensing and Regulation.

License Expires: April 02, 2027



Courtney Arbour
Executive Director



CONSUMER MOLD INFORMATION SHEET



State rules require licensed mold assessors and remediators to give a copy of this Consumer Mold Information Sheet to each client and to the property owner, if not the same person, before starting any mold-related activity [16 TAC 78.70].

How does Texas regulate businesses that do testing for mold or that do mold cleanup?

The Department of Licensing and Regulation (TDLR) regulates such businesses in accordance with the [Texas Occupations Code, Chapter 1958](#). Under the [Texas Mold Assessment and Remediation Rules \(rules\) \(16 Tex. Admin. Code, Chapter 78\)](#), all companies and individuals who perform mold-related activities in Texas must be licensed by TDLR unless exempt. (See Page 2 regarding owner exemptions.) Individuals must meet certain qualifications, have required training, and pass a state exam and criminal history background check in order to be issued a license. Applicants for a mold remediation worker registration must have training and pass a criminal history background in order to be registered by TDLR. Laboratories that analyze mold samples must also be licensed and meet certain qualifications. The rules set minimum work practices and procedures and also require licensees to follow a code of ethics. To prevent conflicts of interest, the rules also prohibit a licensee from conducting both mold assessment and mold remediation on the same project. While the rules regulate the activities of mold licensees when they are doing mold-related activities, the rules do not require any property owner or occupant to clean up mold or to have it cleaned up.

How can I know if someone is licensed?

A licensed individual is required to carry a current TDLR license certificate with the license number on it. A search tool and listings of currently licensed companies and individuals can be found at: <https://www.tdlr.texas.gov/LicenseSearch/>.

What is “mold assessment?”

Mold assessment is an inspection of a building by a mold assessment consultant or technician to evaluate whether mold growth is present and to what extent. Samples may be taken to determine the amount and types of mold that are present, however, sampling is not necessary in many cases. When

mold cleanup is necessary a licensed mold assessment consultant can provide you with a **mold remediation protocol**. A protocol must specify the estimated quantities and locations of materials to be remediated, methods to be used and clearance criteria that must be met.

What is meant by “clearance criteria?”

Clearance criteria refer to the level of “cleanliness” that must be achieved by the persons conducting the mold cleanup. It is important to understand and agree with the mold assessment consultant prior to starting the project as to what an acceptable clearance level will be, including what will be acceptable results for any air sampling or surface sampling for mold. There are no national or state standards for a “safe” level of mold. Mold spores are a natural part of the environment and are always present at some level in the air and on surfaces all around us.

What is “mold remediation?”

Mold remediation is the cleanup and removal of mold growth from surfaces and/or contents in a building. It also refers to actions taken to prevent mold from growing back. Licensed mold remediation contractors must follow a mold remediation protocol as described above and their own **mold remediation work plan** that provides specific instructions and/or standard operating procedures for how the project will be done.

Before a remediation project can be deemed successful, a mold assessment consultant must conduct a **post-remediation assessment**. This is an inspection to ensure that the work area is free from all visible mold and wood rot, the project was completed in compliance with the remediation protocol and remediation work plan, and that it meets all clearance criteria that were specified in the protocol. The assessment consultant must give you a **passed clearance report** documenting the results of this inspection. If the project fails clearance,

further remediation as prescribed by a consultant will be necessary.

What is a Certificate of Mold Damage Remediation?

No later than the 10th day after a mold remediation project stop date, the remediation contractor must sign and give you a **Certificate of Mold Damage Remediation**. The licensed mold assessment consultant who conducted the post-remediation assessment must also sign the certificate. The consultant must truthfully state on the certificate that the mold contamination identified for the project has been remediated and whether the underlying cause of the mold has been corrected. (That work may involve other types of professional services that are not regulated by the mold rules, such as plumbing or carpentry.) Receiving a certificate documenting that the underlying cause of the mold was remediated is an advantage for a homeowner. It prevents an insurer from making an underwriting decision on the residential property based on previous mold damage or previous claims for mold damage. If you sell your property, the law requires that you provide the buyer a copy of all certificates you have received for that property within the preceding five years.

How is a property owner protected if a mold assessor or remediator does a poor job or damages the property?

The rules require licensees to have commercial general liability insurance in the amount of at least \$1 million, or to be self-insured, to cover any damage to your property. Before hiring anyone, you should ask for proof of such insurance coverage. You may wish to inquire if the company carries additional insurance, such as professional liability/errors and omissions (for consultants) or pollution insurance (for contractors), that would provide additional recourse to you should the company fail to perform properly.

How is my confidentiality protected if I share personal information about myself with a company?

Under the code of ethics in the rules, to the extent required by law, licensees must keep confidential any personal information about a client (including medical conditions) obtained during the course of a mold-related activity. Further, you may be able to negotiate a contract to include language that other personal information be kept confidential unless disclosure "is required by law." However, licensees are required to identify dates and addresses of projects and other details that can become public information.

How do I file a complaint about a company?

Anyone who believes a company or individual has violated the rules can file a complaint with TDLR. For information on this process, call 1-800-803-9202, or complete the online complaint form at <https://www.tdlr.texas.gov/complaints/>.

Can property owners do mold assessment or remediation on their own property without being licensed?

Yes. A homeowner can take samples for mold or clean it up in the home without a license. An owner, or a managing agent or employee of an owner of a residential property is not required to be licensed, **unless** the property has 10 or more residential dwelling units. For non-residential properties, an owner or tenant, or a managing agent or employee of an owner or tenant, is not required to be licensed to do mold assessment or remediation on property owned or leased by the owner or tenant, **unless** the mold contamination affects a total surface area of 25 contiguous square feet or more. Please refer to 16 TAC §78.30 for further details on exceptions and exemptions to licensing requirements.

For more information about mold and the Texas Mold Assessment and Remediation Rules, contact:
Texas Department of Licensing and Regulation
Mold Assessors and Remediators
P.O. Box 12057, Austin, TX 78711
Phone: 512-463-6599 or 800-803-9202
www.tdlr.texas.gov

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Direct Exam Chain of Custody

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Company name		Dallas Mold Consultants				moldlab					
Address		8080 N. Central Expy Ste 1700		City	Dallas	State	TX	ZIP	75206	FM-17 External 10 Line Chain of Custody Form	
Project name		Weinstein- 090425				Submitted By:		Dayna Boor			
Project address		220 E Broadway Ave #2145, Ft. Worth TX				ZIP	76104		Cell phone		214-606-1330
Project#(optional)		Turnaround Time				Email address:		dayna@dallasmoldconsultants.com			
Sample Date		09/04/2025		3HR	6HR	24HR	48HR	3DAY	5DAY	CC:	

Test Codes	MOLD				ASBESTOS				
	Air Samples		Surface Samples		7. PLM		8. PLM Point Count		
	1. Spore Trap: mold only 2. Spore Trap: mold & other particle		3. Tape/Swab/Bulk: mold only ratings 4. Tape/Swab/Bulk: mold & other particle ratings		9. Tape/Bulk: mold only - μcm^3 10. Tape/Bulk: mold & other particles - μcm^3				
Sample # or ID	Sample Name, Location or Description	Temp	R.H. %	Test code	Time on (applicable to air samples only)	Time off (applicable to air samples only)	Total Vol. (applicable to air samples only)	Sample Type (Bulk, Tape, Swab, Allergenic, etc.)	No. of Containers
1. 090425-01	Guest Bedroom Tape Lift	76	63	3				tape	1
2. 090425-02	HVAC Closet Drivall Tape Lift	76	63	3				tape	1
3. 00010444	HVAC Closet Hallway	76	63	1	11:39am	11:44am	75L	an	1
4. 00010785	Guest Bedroom	76	63	1	11:45am	11:50am	75L	an	1
5. 00010449	Living Room	76	63	1	11:52am	11:57am	75L	an	1
6. 00010704	Master Bedroom	76	63	1	11:58am	12:03pm	75L	an	1
7. 00010650	Outside Baseline	92	43	1	12:05pm	12:10pm	75L	an	1
8.									
9.									
10.									

Payment options	☐ Invoice to account	Released by (your signature)	By signing this document, you certify that these samples were not tampered with while under your care and accept the Moldlab, Ltd Terms of Service, available at moldlab.com/terms.	Received Date Stamp:
	☒ Process credit card on file		Time: 1:15pm	RECEIVED SEP 04 2025 BY:
	☐ enclosed check#	Date: 09/04/2025		
Field Notes:				
Special Instructions:				
Tracking #:				

Lab Job # 25-111919 25-111920

Rev. 7, Issue Date: 3/24/2022 2501 Mayes Road, Ste. # 110 | Carrollton, TX 75006 | info@moldlab.com | 1-800-416-6653 Page ___ of ___

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 9/4/2025 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

Page 1 | 1

Results apply only to samples as received and tested. Results may not be reported or reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Field blank correction of results is not applied. An estimate of measurement uncertainty is provided upon request. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. This report does not express or imply interpretation of the results contained herein. LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker

Approved by:

Kristina Rucker, Lab Director



moldlab
2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

PROJECT INFORMATION
Weinstein- 090425
220 E Broadway Ave #2145
Fort Worth, Texas 76104
Project No.: Not Provided

Report

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**

(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

Sample No: 090425-01 **Analysis Date:** 9/5/2025 **Sample Type:** Tape /Bio-tape
Location: Guest Bedroom Tape Lift

Identification

Aspergillus/Penicillium-like
Chaetomium
Cladosporium
Hyphal Fragments

Rating

	Minor		
			Heavy
	Minor		
			Heavy

Sample No: 090425-02 **Analysis Date:** 9/5/2025 **Sample Type:** Tape /Bio-tape
Location: HVAC Closet Drywall Tape Lift

Identification

Chaetomium
Hyphal Fragments

Rating

			Heavy
			Heavy

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

Results apply only to samples tested. Results may not be reproduced except in full without written approval of Moldlab. All samples were received in acceptable condition unless noted in the Tech Notes section. Moldlab assumes no responsibility for sample collection or handling prior to receipt at the laboratory. Field blank correction of results is not applied. Rating is based on the average Qualified Structures (QS) per Field of View (FV). A QS is the analyte of interest chosen by the client. No Mold Detected (0 QS), Minor (1 QS/FV or less), Moderate (>1 to 3 QS/FV), and Heavy (>3 QS/FV) ratings are used. QS observed from the samples submitted are listed on this report. If a QS is not listed, it was not observed in the samples submitted. This report does not express or imply interpretation of the results contained herein. Samples received and analyzed by Moldlab, Ltd.

moldlab

2501 Mayes Rd #110
Carrollton, Texas 75006
P - (972) 820-9373
Toll Free (866) 416-6653
Website - www.moldlab.com

Direct Exam FAQ

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3



**DALLAS MOLD
CONSULTANTS**
(972) 945-6653
10440 N Central Expressway
STE 800
Dallas, Texas 75231

This test report contains the following sections: Cover, Report, FAQ, and Glossary

What does the rating system mean?

Mold is a normal part of our environment, and mold spores can settle out of the air into accumulated dust. This can cause 'minor' ratings of several different types of mold to appear even in a typical house dust sample, and these may not necessarily be a cause for concern. However, a 'heavy' rating may indicate that the sample was taken from a source of mold. Below are the exact criteria for each rating:

- 'No mold detected' means that the sample submitted did **not** contain a detectable level of mold.
- 'Minor' means that the technician observed 1 or fewer structures of mold per field of view under the microscope.
- 'Moderate' means 1 to 3 structures of mold were detected per field of view.
- 'Heavy' means greater than 3 structures were detected per field of view.

Always take into consideration the sample as a whole when interpreting results. It is important to also consider the types of mold detected and the location the sample was taken.

How do I learn more about the types of mold listed on my report?

Each report comes with its own mold dictionary, called the Glossary. Simply scroll to the Glossary section of your report and each mold type is listed alphabetically. There you'll find helpful information about each mold type.

Do I have the Black Mold?

Usually when a customer asks this question he/she is referring to Stachybotrys. Although Stachybotrys is black in color, so are many other types of mold. Do not discount the importance of other types of mold listed on your report simply because you do not see the word Stachybotrys or Black mold. For more about 'black mold', visit our website at: <https://www.moldlab.com/black-mold>

How do I get rid of it?

Many molds are allergens and some may be toxigenic. Disturbing the mold with cleaning methods increases the chances of exposure to the particulate. Mold clean up and disposal methods vary greatly from company to company. A good rule of thumb is that if the contaminated area is small and the material is non porous, such as metal, it can be cleaned by traditional methods, taking care to use personal protective equipment. Porous materials on the other hand, such as wood, textiles, or sheetrock, are difficult to clean because of the microscopic holes in the material. The 'root-like' structures of the mold called hyphae/mycelia can grow down into the holes and make it hard to clean effectively. The surface will appear clean but as soon as conditions are favorable the mold can start to grow again. Here is a link to the EPA mold help guide: <https://www.epa.gov/mold/brief-guide-mold-moisture-and-your-home>

Can we still live here?

There are no established 'safe' levels of mold, just as there are no established 'unsafe' levels of mold, and individuals have different resistances and reactions to mold. Persons that are most likely to be adversely affected by mold exposure are: children, elderly, immunocompromised, and persons with respiratory disorders. If you suspect you are experiencing adverse health effects as a result of mold, please consult a medical professional. Please note that Moldlab, Ltd. is not a medical, or clinical laboratory and we do not offer medical consulting or advice.

Tech Notes:

Page 1 | 1

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

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LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.



2501 Mayes Rd #110
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Website - www.moldlab.com

Direct Exam Glossary

Test Code 3: Direct Exam -fungal limited
Analysis Method: Internal SOP M-3

This test report contains the following sections: Cover, Report, FAQ, and Glossary

***Diagnosis of health effects should be left to a medical professional. Moldlab is not a clinical laboratory and does not have medical professionals on staff.

Health effects in general are not well studied, and dosage, exposure, and sensitivity thresholds are not well known and can potentially vary tremendously depending on various conditions and on the particular individual. Effects can also vary from species to species within a particular mold genus. The EPA, OSHA, NIOSH and other occupational health related associations in the U.S. have not yet established permissible exposure levels (PEL), recommended exposure limits (REL), or other limit values for aeroallergens.

Please realize that the evaluation of one's specific results in terms of potential health hazards and subsequent courses of action are beyond the scope of the laboratory analysis.

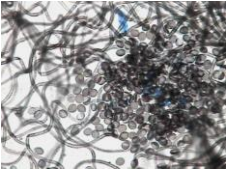
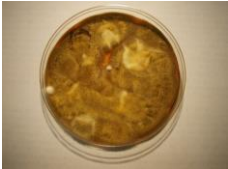
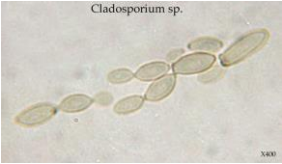
Pictures / images are for *illustration* purposes only and are NOT of the samples tested.

Terminology:

- Allergen- the most common effect, and can range from hay fever and asthma, to a very particular reaction in certain organs or tissues.
- Contaminant- something that is present without injuring or benefiting the host; does not cause infection.
- Opportunistic pathogen- Causes infection only when the weak or injured condition of the person gives the agent opportunity to infect; rarely infect persons who are otherwise healthy.

Definition	Images	
<u>Aspergillus/Penicillium-like</u> (as-per-jill-us) / (pen-uh-sill'ee-um) Classification: Allergen / Contaminant / Opportunistic Pathogen Possible Health Effect: Aspergillus is common on tape lift samples and air samples, but its spores are indistinguishable from Penicillium spores in most cases. There are a few exceptions but the species ID must be made from culture, and is still a difficult job. Health effects vary by species, but many are listed as allergens. Some species can produce toxins that may have significant health effects in humans. Aspergillus is listed as one of the most infectious types of mold, but infections are not common in normal healthy immune systems. However, if you are immune suppressed or compromised this should be discussed with your physician. Macroscopic Morphology: Aspergillus can appear in a wide range of colors from white to purple, yellow to green, see images next to text. Environment: Commonly found in the environment around the world.	 	

Tech Notes:

Definition		Images	
Chaetomium (kay- toe-me-um) Classification: Contaminant / some report allergen Possible Health Effect: Rarely involved in systemic and cutaneous disease and sometimes reported to be allergenic. Some species can produce toxins, and there is some research interest on whether these toxins can cause cancer. Macroscopic Morphology: The surface of the mold is cottony, spreading and becomes tan or gray with age. With close examination the surface sometimes will appear to have little black specks like pepper. Environment: Chaetomium is one of the few Ascomycetes that will grow and produce spores indoors. It prefers to grow on cellulose for example paper and wood. Primary IAQ importance is that it will grow in the same conditions as Stachybotrys (wet cellulose) and sheetrock paper. Colonies of Chaetomium and Stachybotrys will be growing on top of one another. Also, found in soil and hay.		 	
Cladosporium (clad-oh-spore-ee-um) Classification: Common Allergen/ Contaminant Possible Health Effect: Rarely pathogenic, it is a common agent of hay fever and asthma and other allergy related symptoms. Macroscopic Morphology: Surface of the mold is greenish brown or can appear black in color with age and have heap or folded appearance. Environment: Cladosporium can be found in most air samples most of the time. It is very common. Cladosporium is one of the types of mold found growing on HVAC vent covers and grills. It can grow on leaves, textiles, wood, paper, and decaying vegetation.		 	
Hyphal Fragments (hy-full) Classification: N/A Possible Health Effect: N/A Macroscopic Morphology: Not a type of mold. A hyphal fragment is a small piece or portion of 'root'-like structure called hyphae/mycelia. Hyphal fragments are common in air samples. Mold type cannot be identified by the hyphae alone. Environment: N/A		 	

Tech Notes:

Submitted By: Dayna Boor | via: Hand Delivered | Submittal Date: 4/9/2025 13:13 | Sample Date: 9/4/2025 | Analysis Date: 9/5/2025 | Report Date: 9/5/2025 | Lab Job No.: 25-111920 | Technician: Steven Reese

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LAB0137 by the Texas Dept. of Licensing and Regulation. AIHA LAP, LLC EMLAP Accredited ID No. 154782. Report Approved by Kristina Rucker.

Transcript of Call with Glynis Zavarelli – September 19, 2025

Audio file

[2025.09.19 Phone Call with Glynis Zavarelli re Certificate of Conference and accommodations.m4a](#)

Transcript

00:00:00 Glynis Zavarelli

This is Glynis.

00:00:01 Kathryn Copeland

Oh, hi, Glynis. This is Katie Copeland. I just got your voicemail about the certificate of conference and I was wondering if you're going to set it for hearing like through the court so I'll get notice.

00:00:16 Glynis Zavarelli

Of course, yeah.

00:00:19 Kathryn Copeland

Because I've I've never like. Interfered with the remediation getting done, I've just said, "hey, we got to do it right through TDLR," like get approvals and do proper mold remediation that's legal.

00:00:36 Glynis Zavarelli

So can I mark that I was able to confer with you and you're not in an agreement with having an injunction entered against you?

00:00:44 Kathryn Copeland

Correct.

00:00:46 Glynis Zavarelli

Okay, yes. And then we'll get it set for hearing as soon as possible. I also left a message for Mr. Douglas on both phones that I have for him, the one with the bar, which I don't think really even where he works anymore, but regardless, it's still showing on the bar and then on the one that's on his letterhead and I've just left him a message that said basically the same thing that.

Well, the message for the text on the Texas bar related number. I just said I'm calling to talk to him. The other one that I knew to be a number fully associated with him. I left a message similar to what I just left for you.

00:01:19 Kathryn Copeland

So you know that TDLR has like moved the case to the prosecutor, right? So it's not me preventing things from going forward.

00:01:33 Glynis Zavarelli

I mean, I I'm I'm I'm not aware of TDLR stopping our remediation work that we've got scheduled at all Miss Copeland. They've not done anything like that.

00:01:47 Kathryn Copeland

So yeah, well, I I don't know if I mean. Has there been a new mold assessment?

00:01:57 Glynis Zavarelli

There was.

00:01:59 Kathryn Copeland

I know that you sent over a couple of names at one point.

00:02:08 Glynis Zavarelli

Yes, there was a new mold assessment done and that, a new mold protocol company put together a protocol. That information was all provided to the TDLR and provided timely.

00:02:24 Kathryn Copeland

I was told that, when I asked Ida Palmer, the investigator, about it, she said she had not received anything new because I wanted to get a copy of the mold assessment report and the remediation protocol to make sure it included all areas that are affected and she said she hadn't received anything and that it had been moved to the prosecution department.

00:02:55 Glynis Zavarelli

Yeah, I mean, I can't speak obviously for Ms. Parmer and how their offices work, Ms. Copeland, but I do know that the folks that Weinstein hired to do the assessment, prepare the protocol, and then get the remediation started have all done what they're supposed to do with TDLR.

Like I said, I don't know what, I can't speak for Ms. Parmer and what her division of TDLR would do with respect to that because that's the investigation division. So I think they have separate roles, but yeah, we're ready to start it.

00:03:28 Kathryn Copeland

I think I'm entitled to a copy of that assessment report, though, and the remediation protocol.

00:03:42 Glynis Zavarelli

Okay, I don't know that you actually are entitled to a copy of that, but under any particular statute or requirement, but I will talk to Weinstein about providing that to you. Okay. It'll come from me.

So I'll try to get in touch with them and see if they're okay with me sending that your way and like I said, with respect to any hearing that gets set, of course you would get notice and I'll give it to Mr. Douglas too. I don't know that he's going to be assisting on this, but I'm not sure.

00:04:12 Kathryn Copeland

Kind of depends on how things are going.

00:04:17 Glynis Zavarelli

Yeah, I mean my intent though, Miss Copeland was to let him know about it too, just in case, right?

00:04:21 Kathryn Copeland

Yeah, of course.

00:04:23 Glynis Zavarelli

And so yeah.

00:04:23 Kathryn Copeland

I was going to ask ohh about. So where, I mean, where am I going to sleep tonight? Because I've just been getting sicker and sicker. Like even right now I'm sitting outside in the common space at the apartment complex because it's the only place. I have that I can be.

00:04:44 Glynis Zavarelli

Yeah, the only hotel that I'm aware of that Weinstein has approved is that Holiday Inn Express in Fort Worth.

So I will. I mean, did you see?

00:04:55 Kathryn Copeland

Did you see my e-mail this morning like explaining how it's between a service road and two busy roads that intersect so that would, because of my cognitive problems and my balance problems, that would like prevent me from being able to even cross the street to go get food or something.

So that's why I was hoping we could consider some of these other options downtown that are actually, because that, I don't know if you realize that Holiday Inn, it says downtown, but it's

actually outside the edges of downtown by all this, you know, traffic. Whereas a place that's truly downtown would be more pedestrian friendly.

00:05:50 Glynis Zavarelli

Yeah, I have not seen that, but I will look for it and then I'll communicate with Weinstein this afternoon and I will e-mail you back.

00:05:58 Kathryn Copeland

Okay, thank you.

00:06:00 Glynis Zavarelli

And I guess you're still at the apartment.

00:06:02 Kathryn Copeland

Yeah.

00:06:06 Glynis Zavarelli

Okay.

00:06:08 Kathryn Copeland

I know you had said that work was going to start on the 22nd, but that's why I was confused and sent the e-mail to TDLR because I thought you had to have the protocol on file at least five business days in advance and I hadn't seen it, so.

00:06:23 Glynis Zavarelli

Well, like I said, I mean, I'm obviously not the most people doing this work. I'm not a TDLR licensed person, but it's my understanding they've complied with all the deadlines that are required to be able to start on the 22nd and that's what we would like to be able to have happen so that we can get you back into that apartment as soon as possible.

00:06:43 Kathryn Copeland

Do you know if that includes the area where all the black mold is in the front hallway because that was excluded on the previous protocol.

00:06:57 Glynis Zavarelli

Yeah, I don't. I haven't seen your protocol. The updated protocol. I don't know that I ever saw the original protocol, to be honest with you, I can't remember now, but. I haven't seen the updated one that's been done. I can't answer that because I don't, I just don't have the documents. I think you've now asked me for the assessment report and the protocol, right? You wanted both of those.

00:07:18 Kathryn Copeland

Yeah, the assessment and the protocol. And mostly I just want to make sure to like it addresses, I don't know how they decontaminate property, but I know that's something that can be done and that would be part of a protocol to make sure it's all three areas of mold and all, affected property be decontaminated.

And, I truly do want to reach a resolution and I think the smartest thing would be for let's just get my stuff moved out and like into a storage somewhere so that y'all can do your work, you know, without any of my stuff in your way and I don't have to worry about any of my stuff getting damaged or contaminated.

But I just need to have those conversations and I can't always communicate like right now I'm doing well, but sometimes I have a lot of trouble getting words to my mouth. Like if that makes sense.

00:08:31 Glynis Zavarelli

So one, I think obviously the remediation we need to get figured out and taken care of and all that, and that's what this temporary injunction deal was about that conference tried to, did this conference for you on.

But you brought up something separate, and what I want you to know is this, regardless of getting this apartment remediated, which we need to do and we need to get you back in it, we do appreciate that we need to get resolution to some of the other claims that you made. So I want you to know that it's still a goal of mine, and I understand your comments right now about your guilty when you are or not really able to have those kinds of conversations.

I am similarly situated. I think the last several times you've sent any kind of involved e-mail or letters, I've been out of town, in court all day long, in depositions all day, so I'm not frequently in my office to even get information like this and be able to respond quickly. So that is the reason, Ms. Copeland, I suggested back on August 26th that you and Mr. Douglas and I and somebody from Weinstein, that we use a mediator and we will pay for your mediation fee.

We're not even asking you to do that. But let's get a mediator involved that we can all sit down on a time that we've organized and scheduled for so nobody's caught off guard and nobody is rush for time or whatever, because they have to go somewhere else that we can sit down and really have the discussions that we need to have to truly get all of this resolved. Because that's been my goal since.

00:09:57 Kathryn Copeland

Yeah, but I don't. I don't think they are even like close to realizing how much damages this is going to be, and I don't think they're going to send you with the authority to settle this for what it

needs to settle for. And even then, like it just seems disingenuous to pay for a mediator, but not pay for like food per diem.

You know, it's just like, how can you be good faith on one hand, but then like knowingly making me stay in a toxic unit on the other hand?

Because even if I wanted to take the Holiday Inn thing, I don't have any money to get there and I don't have anyone to help me with all this medical stuff I have to schlep around.

And, and the reason, one of the other reasons that I haven't gone to the Holiday Inn is because I think when we do have a conversation about like where, what my needs are, whatever, I'll end up having to move again. And it's just really hard on me every time I have to move, so I didn't want to go there just to leave in a few days.

00:11:19 Glynis Zavarelli

Well, I will comment on the thing about your concern regarding whatever authority I would have that kind of thing. One, appreciate this please this wouldn't be a mediation where it's just me showing up with Weinstein, the insurance carrier will be showing up to this too and so forth. Just so you know.

And I know I looked you up on... the Internet a while back, and I know you're a lawyer, I know you're not practicing right now, but I think I found some stuff that said that you used to mediate cases.

00:11:49 Kathryn Copeland

Yeah.

00:11:49 Glynis Zavarelli

That you were a mediator.

00:11:52 Kathryn Copeland

I got fourth place in the international mediation competition, so I'm a fan of mediation, but I'm not a fan of it being used to really just obtain information to be used against me. I think that's what was going to happen.

00:12:09 Glynis Zavarelli

Okay, so that brings up the next point then. And now that you're explaining this to me this way, I'm hearing your concern. I've been asking for information and documents, et cetera, that I know this particular insurance company needs, Ms. Copeland, because I've worked up for them for probably two decades. I know the kinds of information they look for.

I know the kinds of things they need to be able to review and evaluate to get reasonable authority on something and not just come in with nothing. It's easy to come in with nothing, right? It's easy

to ask for the sun of the moon and not really prove anything. But that's not what mediation is. Since you are a mediator, you have been a mediator. I know you understand what I've just said and how the practicality of each side needing to have the information that they need to a point where they can do a truly insightful and fair evaluation and nobody's caught off guard at mediation, well here's this, you didn't consider this, well that's because we didn't have it.

I mean, I will say, you don't know me and I don't know you, but I don't ever go to any mediation without feeling like my client and the carrier are prepared and that they've done a good job reviewing everything to put a value on something because it wastes my time the opposing parties and everybody's money and in this case it was just their money because they're not going to ask you to pay for anything on mediation right but I mean so but you're you you've just now identified for me the concern that you're just going to this is what I'm hearing you say Ms. Copeland you're going to give this information and rather than use it to actually get to a point where we're resolving this monetarily with you we're just going to use it as basically ammunition against you these are my words not yours but that's how it sounds that that's what you're worried about?

00:13:55 Kathryn Copeland

It's one of my concerns that that it's not, you know, it just really doesn't seem like. And maybe it's hard to explain the crossover between that and the accommodations right now, but like if I don't even have a safe place to sleep and eat, how could I possibly agree to going into a mediation where, like, I am under, I'm basically under duress because I'm stuck in this situation.

So, like, it's almost like we have to solve one before we can get to the other, but I want to get to the other as fast as possible. But I have to get stable first, you know, yeah.

00:14:51 Glynis Zavarelli

Yeah, so I I guess I'm not. I mean, I appreciate everything you've just said because it does at least give me some information to understand a perspective that you have. I just feel like we all my perspective as the attorney for the defendant on this is just that we need to get all the things resolved at once and get this done as soon as possible.

00:15:11 Kathryn Copeland

Frankly, well, that's true, but but either way, they have a duty to, you know, put me in a safe place right now. So, but like that duty remains either way.

00:15:24 Glynis Zavarelli

So yeah, and I guess Miss Copeland, you and I can just agree to disagree about what Weinstein's obligations or duties are. So and I don't think that we really need to have a debate about that right now. I do need though to. I do need to get our stuff filed with the right certificate of conference on there. I do need to get with one sign and see what they can do as far as lodging goes for

tonight and one that has a permanent attached to it, not bouncing around or whatever, which was their intent in any event.

They would have kept you with the nobleman if the nobleman could have continued to have a room for you. You know, and that was one of the places that...

00:16:07 Kathryn Copeland

From what I saw, that Kodi, the property manager, had called the front desk and everyone was making a stink about this incidental fee which they had been carrying from week to week without a problem until that phone call and until you got involved and then suddenly, if you can't pay this, we're not going to extend your room. And then even when I could pay it, they weren't going to extend the room and which I couldn't pay it anyway, but like hypothetically. So that all kind of fell apart. But there I was looking at some other hotel options like It just takes a long time for me to have to try to figure out like, okay, does this have that? Does this have this? You know, what am I going to need? How am I going to make this practically happen? But I was looking at like the Worthington downtown because that's in a safer like pedestrian area and less expensive.

00:17:24 Glynis Zavarelli

Do you, do you, I'm sorry to interrupt you, Ms. Copeland, do you know what the room rate for the Worthington Downtown is?

00:17:32 Kathryn Copeland

No, but I can put it together real fast and e-mail it.

00:17:38 Glynis Zavarelli

I mean, I'm googling them right now, just so you know, as I'm off to you. I think what Weinstein was paying as a nobleman was around 250, 260, something like that, is my understanding. I know I had asked you, and you said you weren't able to get that room right, and I guess that might have been because Weinstein was paying for it. I don't understand that situation logically that presented for you that way. But my memory was, because you know that night you called me, when the police were there, I called them between our two phone calls.

And I said, if I could get one thing to pay the remaining incidental balance, whatever that was, for food or whatever it was, could you guys please just continue to let her have a room there? And they said no, just so you know.

00:18:31 Kathryn Copeland

I appreciate you doing that.

00:18:33 Glynis Zavarelli

Well, and what's your room rate? Because you at that point had continued to say to me, I don't even know what it is. So I said, is it around 250, 260? And even the gentleman on the phone said, well, I don't know specifically what her room rate has been every night. I'd have to look all that up. But yeah, he said, I'd say it's around 250, 260. I said, oh, OK. So I mean, that's as far as-- are you still there?

00:18:57 Kathryn Copeland

Yes, I am.

00:18:59 Glynis Zavarelli

That's as far as that got. But let me figure out what-- Let me figure out what the Worthington room rate would be.

00:19:06 Kathryn Copeland

Yeah.

00:19:07 Glynis Zavarelli

All right.

00:19:09 Kathryn Copeland

The other, the good thing in my life is I've been in this horrible custody fight and some good things just happened that make me think that my girls could be with me very, very soon. And so, you know, I was willing to have one room before, but because I had one room, I wasn't able to have like my caregiver support, but I kept thinking, oh, this is just temporary, it'll be over soon, but I have to have a place for my girls to come back to, so I'd love to have a caveat on wherever I end up, at least adding a room when my girls are back with me.

00:19:56 Glynis Zavarelli

So I'm probably not going to be able to get them to two rooms.

00:20:00 Kathryn Copeland

I mean, not today, two rooms, but, but when, because like I have a two-bedroom apartment now, so.

00:20:08 Glynis Zavarelli

Yeah, I, let me, well, okay, so for today I'm going to look at what the room rate for one room, and I'm going to ask Weinstein about that. And then I, I'm making, I'm making zero representations about two rooms, just so because I don't receive that would be approved, but you know what, I haven't crossed that bridge yet, so. And also, I mean.

00:20:34 Kathryn Copeland

Alternatively, I could be looking at Airbnbs instead, which would, you know, cover like my needs for my kids and the dogs better. But, you know, I only have so much like brain power per day, so I don't know which direction to use it. Whether it's Airbnbs or finding a permanent place where we can just move or, you know, there's a lot of things going on, but I think they could be solved pretty easily. Like, "hey, let's get Katie's stuff in storage." That's done. And "hey, let's, like, find a temporary place to stay while she looks for a permanent place to stay." And that's done.

00:21:18 Glynis Zavarelli

I mean, I think at this point, again, everything you're saying to me, I clearly haven't had a chance now to talk to Weinstein about right now, right? So I think at this point, you know, Weinstein, I know that they've done the lodging and the pet boarding. I'm assuming they're inclined to still do lodging and pet boarding for you and I'll look at this Worthington room rate and see if that's within that 250 or so price for you. And I'll get you an e-mail earlier.

00:21:43 Kathryn Copeland

It looks like it is, just from what I'm seeing, yeah.

00:21:48 Glynis Zavarelli

So I'll get you an e-mail over if they will approve that, Ms. Copeland. Yeah.

00:21:51 Kathryn Copeland

But I don't think they have kitchenettes there. So, you know, that's where I might have to still, like, insist on some kind of food situation because that, I went several days hungry at both hotels because I couldn't afford to eat and I couldn't take care of myself, so.

00:22:20 Glynis Zavarelli

Well, I don't, they've not agreed to pay you a per diem to this point, and I don't anticipate that's going to change. So even if they wouldn't pay the per diem, and I expect they won't Ms. Copeland, do you still want to check on the Worthington Hotel?

00:22:35 Kathryn Copeland

I don't know, because like, you know, at least the nobleman had a kitchenette, you know?

00:22:43 Glynis Zavarelli

I, I, that was, yeah, I do remember that. But I mean, I guess I'm, I am willing to check on the Worthington and check with the people at Weinstein about approving that at that around 250 or so price point and getting that set up for you.

But I mean, to be super forthcoming, I don't know where this sort of takes me if that's not something you need to now want me to do anymore.

00:23:08 Kathryn Copeland

Well, you know, I think if you could make this proposal to them, I think it would be fair to do the Worthington and the food per diem, and that would be the compromise. And so if you can pitch that to them, I'd appreciate it. And we'll see what they say.

00:23:27 Glynis Zavarelli

Yeah, Ms. Copeland, I'm absolutely happy, willing, and able to telling them this is what you have requested. But at the end of the day, this is their decision, not mine. If I come back to you with only, well, they'll do the Worthington and they'll make that reservation now and they'll make it through the end of this remediation project.

If they do that and they agree to that and I e-mail you that but they won't agree to per diem, I guess the dilemma that I just need to know about is are you going to go ahead and check into the Worthington because they did keep that reservation at the one hotel for several days and they lost money on that.

00:24:08 Kathryn Copeland

I don't know why they paid for stuff without talking to me. Like, I'm not that hard to talk to.

00:24:12 Glynis Zavarelli

But -- So but the -- But.

00:24:17 Kathryn Copeland

Yeah, I can't really tell you where I'll be like an hour from now as far as if they say no, what will I say? Like, let's just see what they say to my proposal and see what happens, you know?

00:24:32 Glynis Zavarelli

Yeah, and then I guess what I'm just going to kind of give you sort of the foresight on this. That's what I'll do, and if they come back and they say yes to the Worthington and they'll make a room, blah, blah, blah, reservation for you, but not as a per diem, and I e-mail that to you, then there will be a time that you need to confirm what you're doing with the other. And I will leave at the time that I tell you in the e-mail I'm leaving. I am. I have some obligations at home tonight that I delay and so so I will not be around.

00:25:05 Kathryn Copeland

I guess I'll look at Airbnb options as a backup plan while you're talking to them about that proposal, so.

00:25:13 Glynis Zavarelli

I mean, I I guess you can look at anything you feel comfortable looking at, but if it's more than 250 or so, I don't expect that that will be doable.

00:25:24 Glynis Zavarelli

I don't know what Airbnbs cost, frankly I have no idea. Yeah. So anyways, but-- I.

00:25:30 Kathryn Copeland

Wish I knew like what parameters, you know, or what law they're following because like all the law I'm finding makes it seem like I'm supposed to have a comparable, you know, place and one that meets my needs and.

00:25:50 Glynis Zavarelli

Well, you know, under the property code, Miss Copeland, you had three choices for your remedies at the beginning of all of this. You can terminate it. And they said you can terminate. No, no bad. We won't charge you nothing and you didn't want to.

They offered to move you into another apartment. That didn't work out.

00:26:07 Kathryn Copeland

No, they didn't. They never offered that. In fact, I asked about it and I even called over to the Clearfork version and stuff, but.

00:26:20 Glynis Zavarelli

I've got emails that they are sending back and forth with you on that. But anyway, then the whole hotel situation came up.

00:26:27 Kathryn Copeland

I had to say no to the breaking the lease and just leaving because I didn't have any money to leave. I didn't have money for, you know, like to get set up somewhere. And because I've been so sick, like I'm not going to get approved for anywhere without a bunch of like prepaid rent. So.

00:26:49 Glynis Zavarelli

Yeah, and let me just back up so I can kind of tell you, I think you're asking me what are they basing their decisions on. And then you know the other remedies you had were to go ahead and get it fixed and then deduct that from your rent. You didn't do that, that's fine. Or sue them to get them to prepare the place and that wasn't necessary because they were in the process of trying to get biotechs to do protocols and all that stuff. So the reality is the Texas Property Code doesn't provide any remedy for you to obtain alternative lodging. And I represented a lot of apartment complexes, Ms. Copeland, and I've never had any of them do this.

Even with that big flood, the big freeze we had a few years ago in Texas, I had a complex where every pipe in the whole place almost busted, and they couldn't keep their people there. All those people went and got hotels, and that was what they did. I think they gave them some rent relief for that, but they didn't pay for their lodging and then excused their rent also. That wasn't what happened. In this case, they've been paying for your lodging, your dog's lodging, and you haven't paid rent in two months. So I think they're trying to be accommodating to you in that regard, and they're trying to work with you, and I think that they are, but there was something I was going to ask you though, oh hey, I know what I was going to ask you. You paid rent through July.

00:28:09 Kathryn Copeland

Yeah.

00:28:09 Glynis Zavarelli

So I guess what... So, I mean, you were able to pay rent in July and June, and I haven't gone back and looked at your whole rent history, but I assume you always paid your rent, and I'm assuming that.

00:28:20 Kathryn Copeland

Yeah, I mean, I had help from friends and stuff, but...

00:28:24 Glynis Zavarelli

Okay, so you were not actually particularly, specifically always the one to, I guess, make the rent payment for you, other people now. Okay. And have those friends just become non-existent or did they move or something?

00:28:38 Kathryn Copeland

Well, it was like a guy I was dating that I'm not dating and, you know.

00:28:43 Glynis Zavarelli

Gotcha.

00:28:44 Kathryn Copeland

Okay.

00:28:44 Glynis Zavarelli

Gotcha.

00:28:45 Kathryn Copeland

So I, yeah, I want to get on my feet somewhere that I don't have to move again or my dogs have a big yard they can run around in because I went and visited them the other day and my little dog

is like fat now. It's weird. So he needs to run around. And then for my girls, you know, to not have to move around again.

And I don't know, you know, I don't think I can jump from A to Z to get a permanent place, but last night I was even looking up, like, what if we could just agree to just move me into this rental property permanently somewhere else, but even then it would still take prepaid rent, but for the price of the hotels and stuff, that might shake itself out, you know, but I'm willing to be creative. But I assume that what's going to have to happen is some temporary lodgings right now while we figure out the permanent thing.

00:29:49 Glynis Zavarelli

Yeah, I think the I think the goal frankly, from Weinstein's perspective, is to get you into a hotel and keep you there. And I think that was what they were doing with the Holiday Inn, which you rejected several times, I understand that. But in any event, now we'll look at the Worthington.

And to get you back in your apartment, I know your lease ends October 26th or something like that, but to get you back into your apartment and finish your lease there and then you'll move on to something different. But, you know, the goal wasn't to keep you jumping from hotel to hotel at different times or any of that remediation was going on, but as long.

00:30:29 Kathryn Copeland

As they were keeping that major third out of the remediation protocol, I wouldn't be able to move back in because it would still have that front third of black mold by the front door, which is what started all of this.

So that's why it was like, "Those are never going to work anyway, because unless they're getting rid of all the molds, it doesn't get rid of all the mold," you know?

00:30:55 Glynis Zavarelli

And you're talking about that area on the inside of your apartment by the front door and like the crease of the wall.

00:31:01 Kathryn Copeland

Yes.

00:31:01 Glynis Zavarelli

For the walls come together, that line that goes up.

00:31:04 Kathryn Copeland

Yes.

00:31:04 Glynis Zavarelli

The line of stuff. Okay, yeah, I know what you're talking about.

00:31:07 Kathryn Copeland

And I think it's probably going to be very difficult and structural, like to get in there and figure out. It might be more complicated than just drywall. I don't know.

00:31:17 Glynis Zavarelli

But I don't either but I let me let me let you go because the more the time passes the more the time passes so let me let me pick up the Worthington let me get with Weinstein on that and then get you an e-mail over to you and then like I said I have to leave for a little bit this afternoon but I'll be back in and then I'm gonna have to leave by 5:30 Miss Copeland but anyways all right let me let you go let me work on the Worthington and I'll e-mail you, okay?

00:31:47 Kathryn Copeland

Okay, thanks.

Verification of Authenticity and Accuracy

I, Kathryn Copeland, state that I made and possess an audio recording of a telephone conversation between myself and Glynis Zavarelli on September 19, 2025. I have transcribed this recording myself, and the above transcript is a true, complete and accurate transcription of that conversation, to the best of my ability. The recording has not been edited or altered. I certify under penalty of perjury that these statements are true and correct.

Respectfully submitted,

A handwritten signature in cursive script that reads "Katie Copeland".

KATHRYN COPELAND

State Bar No. 24086056

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Fort Worth, Texas 76104

Tel: (817) 789-8498

Katie@CopelandLawTexas.com

Defendant and Counter-Plaintiff, Attorney Pro Se

Subject: Correction of Misstatement of Law – Contents Cleaning Regulation under 16 TAC § 78
Date: Sunday, November 9, 2025 at 9:16:05 PM Central Standard Time
From: katie@copelandlawtexas.com
To: Michelle Sortor
CC: Glynis Zavarelli, Brochstein, Amye, claimmail@phly.com, Lile Benaicha
Priority: High

Dear Ms. Sortor,

Your November 7, 2025 correspondence asserts that “contents cleaning is not a regulated activity under the Texas Mold Assessment and Remediation Rules / 16 TAC § 78.” This assertion is demonstrably contradicted by the official project documents in Plaintiffs’ possession and raises significant professional-conduct concerns.

1. Filed MAC Protocol Directly Contradicts the Assertion.

The Mold Assessment Consultant (MAC) Protocol, *Weinstein-090225 (Remediation Protocol Date: September 8, 2025)*, expressly incorporates contents handling and cleaning as part of the regulated remediation project. Section 4.2 (“Cleaning Procedures”) states:

“CONTENTS: Pack-out and clean contents according to Table 2: EPA Cleanup Methods at the end of this document.”

The protocol confirms that the overall remediation area exceeds 25 square feet, triggering mandatory state notification and adherence to the MAC protocol under **16 TAC §§ 78.110–78.150**. Consequently, all steps described within the protocol—including *contents cleaning*—form part of the regulated scope of work subject to the Mold Assessment and Remediation Rules (TMARR).

2. Misrepresentation of Law to an Opposing Party.

When a licensed MAC includes specific cleaning methodologies (such as EPA Table 2 methods) in a TDLR-filed remediation protocol, those actions become regulated under the TMARR framework. Your categorical denial that any regulation applies seeks to nullify the MAC’s binding directives and to deprive me of the statutory protections afforded to occupants whose property has been declared contaminated. Such a statement is contrary to the text of the filed protocol and the governing rules.

Knowingly or recklessly misstating the law to an opposing party constitutes conduct involving dishonesty and misrepresentation under Texas Disciplinary Rules of Professional Conduct Rule 4.01(a) (Truthfulness in Statements to Others).

Accordingly, your suggestion that I am personally responsible for paying for and removing contaminated property because the process is “unregulated” rests on a false

premise. I again demand written confirmation that **all items will be handled in accordance with the MAC's mandatory cleaning procedures in the Weinstein-090225 Protocol.**

3. Documented Violations of the Existing Protocol.

The record already establishes multiple departures from the governing remediation protocol and TDLR standards, including:

These actions violate the filed MAC protocol, **Tex. Occ. Code § 1958.001(6)** (defining remediation to include “removal, cleaning, and disposal of mold-contaminated materials”), and **16 TAC §§ 78.150–.154** (requiring adherence to the consultant’s plan and proper recordkeeping). Such deviations create contamination spread and spoliation risk that remain the responsibility of Weinstein and its insurer.

- Removal of contents from the apartment **without a licensed MRC present or contents-specific containment in place;**
- Storage of contaminated materials in **uncontrolled, unlicensed off-site locations** contrary to the MAC’s directive for pack-out and cleaning under EPA Table 2 methods;
- Failure to maintain **chain-of-custody documentation or photographic inventory;** and
- Representation to the Court that remediation was “continuing,” while **no clearance certificate or post-remediation verification exists.**

4. Continuing Obligation to Provide Safe, Habitable Housing.

Plaintiffs’ own filings and admissions confirm that the premises remain under active remediation and unfit for occupancy. **Weinstein Management and its insurer remain responsible for maintaining safe, alternative housing accommodations.** Terminating that housing violates the Fair Housing Act, implied warranty of habitability, the duty to mitigate foreseeable harm, and the insurer’s duty of good faith and fair dealing once liability has become reasonably clear.

Please confirm by return correspondence that (a) remediation activities will henceforth comply fully with the MAC protocol and TMARR standards, and (b) housing coverage will remain in effect until full clearance is obtained and contents are released accordingly.

If these misstatements and violations are not corrected, this correspondence will be submitted as further evidence of bad faith, regulatory non-compliance, and professional misconduct in the pending motions for sanctions and disqualification.

Ms. Brochstein and Ms. Benaicha,

Your continued inaction in the face of documented misconduct and bad-faith dealings does not absolve you of responsibility—it implicates you in it. By remaining silent when the law demands intervention, you move from observer to participant. I have exhausted every reasonable avenue for voluntary compliance. If you persist in disregarding your statutory and ethical duties, I will seek judicial intervention to ensure accountability for the harm already done and the harm still occurring.

Please confirm by 12:00 p.m. tomorrow that safe, ADA-compliant accommodations have been arranged for me, my children, and dogs. Any further delay will be treated as willful disregard of your duties under the FHA and insurer's good-faith obligations.

Respectfully,

Kathryn Copeland

Attorney Pro Se

(817) 789-8498

Katie@CopelandLawTexas.com

This communication serves as formal notice that immediate relocation assistance is required under federal and state law. Absent confirmation by tomorrow, this correspondence will be submitted in support of emergency relief.

From: Michelle Sortor <msortor@wandzlaw.com>

Date: Friday, November 7, 2025 at 4:29 PM

To: katie@copelandlawtexas.com <katie@copelandlawtexas.com>

Cc: Glynis Zavarelli <gzavarelli@wandzlaw.com>

Subject: RE: Contents Preservation, Licensing, and Chain-of-Custody (Unit 2145) — Immediate Confirmation Requested

Ms. Copeland –

As you are aware, since you have the Dallas Mold Protocol, there is no “contents” cleaning protocol, and there is no requirement or procedure for a mold assessment consultant (MAC) or mold remediation contractor (MRC) to conduct any contents cleaning, as contents cleaning is not a regulated activity under the Texas Mold Assessment and Remediation Rules/16 TAC § 78.

If you would prefer that your items (all items – those stored by Reign, those in the two storage rooms at the apartment complex, and the balcony items) be transferred to another vendor (storage company and/or company to clean the items) of your choice – and for which you will be responsible for paying – please let us know and we will facilitate same. Otherwise – Weinstein will contact Reign to see if they have capacity to arrange for movement of the items in the 4th floor storage unit (the apartment contents which remained in the apartment, and which were packed by Weinstein staff, pursuant to the Court’s directive of October 2) to be moved to Reign, for cleaning by Reign. Please advise if you are agreeable to this, and advise when a Mold Assessment Consultant (retained and paid by you) will be there to inspect the items. We will

update you as to Reign's ability to move the items in the fourth-floor storage room to its facility.

With respect to the items stored in the storage room associated with your apartment unit and the balcony items, those will need to be removed by you as soon as possible since your lease has expired.

Neither the offer to transfer the items nor the offer to clean same constitute an admission by Weinstein as to liability and/or the existence of any particular alleged element of damage, and does not serve to avoid your obligations with respect to mitigation of damages.

Regards,

Michelle Sortor

Michelle S. Sortor
Wentz & Zavarelli, L.L.P.
3120 Sabre Drive, Suite 170
Southlake, Texas 76092

(469) 665 – 9100 – Telephone
(469) 262 – 2078 – Direct Line
(469) 665 – 9106 – Facsimile

From: katie@copelandlawtexas.com <katie@copelandlawtexas.com>

Sent: Thursday, November 6, 2025 9:04 PM

To: Michelle Sortor <msortor@wandzlaw.com>; Glynis Zavarelli <gzavarelli@wandzlaw.com>

Cc: Amye.Brochstein@phly.com

Subject: Contents Preservation, Licensing, and Chain-of-Custody (Unit 2145) — Immediate Confirmation Requested

Importance: High

Dear Ms. Sortor and Ms. Zavarelli,

Please confirm by **4:00 p.m. tomorrow (Friday, Nov 7)**:

1. **Freeze:** No movement, opening, cleaning, or disposal of any contents taken from Unit 2145 (including on-site storage, balcony items, and items at Reign).
2. **Licensing:** Identify the **license numbers (MRC/MAC)** for every entity or person who has handled or proposes to handle these contents. Confirm that no work will occur except under a **MAC contents protocol compliant with 16 TAC § 78**.
3. **Locations & Inventory:** Identify all **locations and custodians** of my property; provide a **location-specific inventory** (photos acceptable) and any **chain-of-custody** documents.

4. **Access:** Agree to **MAC inspection and photo-documentation** before any handling or cleaning.
5. **Consolidation:** Agree to consolidate contents into one secure, climate-controlled location suitable for licensed contents remediation, pending protocol.

If this confirmation is not provided, I will file a **motion for preservation, protective order, and limited TRO** and seek fees and spoliation remedies. Your October 30 email threatening immediate removal and “legal remedies,” and acknowledging that Reign Restoration “is not a long-term storage facility,” underscores the urgency.

I’m sending this tonight so you have it first thing in the morning. I appreciate your prompt attention to ensure nothing is disturbed overnight.

Respectfully,
Kathryn Copeland
(817) 789-8498
Katie@CopelandLawTexas.com

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Date: Monday, November 3, 2025 at 11:28 AM
To: Michelle Sortor <msortor@wandzlaw.com>, Glynis Zavarelli <gzavarelli@wandzlaw.com>
Cc: Amye.Brochstein@phly.com <amyebrochstein@phly.com>
Subject: Re: Request for Confirmation on Storage, Preservation of Belongings, and Insurance Coverage

Dear Ms. Sortor and Ms. Zavarelli,

Thank you for your message. I am not refusing to remove my belongings; I simply cannot do so safely or lawfully until a **licensed mold-remediation company** directs and clears the process in compliance with **16 TAC § 78**.

Please confirm that all items from Unit 2145, including balcony and storage contents, will remain **preserved and undisturbed** until that occurs. I have requested guidance from Philadelphia Insurance regarding next steps for licensed remediation and coverage coordination, and will await their direction.

Sincerely,
Katie Copeland
(817) 789-8498
K.M.Copeland@tcu.edu

(cc Amye Brochstein – Philadelphia Insurance Companies, for coverage awareness only)

From: Michelle Sortor <msortor@wandzlaw.com>

Date: Thursday, October 30, 2025 at 3:46 PM

To: Copeland, Katie <K.M.COPELAND@tcu.edu>, Glynis Zavarelli
<gzavarelli@wandzlaw.com>

Subject: RE: Request for Confirmation on Storage, Preservation of Belongings, and Insurance Coverage

[EXTERNAL EMAIL WARNING] DO NOT CLICK LINKS or open attachments unless you recognize the sender and know the content is safe.

Ms. Copeland:

The items in the storage room assigned to your previous apartment unit, the items in the 4th floor storage room (placed there on October 5 after repeated attempts to obtain direction from you over that weekend - and which were ignored), and the items on the balcony - need to be removed given the expiration of your lease term. Weinstein has advised that you failed to return you key fob, the storage room keys, and other access items (as required by the lease agreement), and as such, you continue to be able to access these items, so that you can move them out. If you contend that you cannot access the balcony items without entering the apartment unit (which as you know you have been ordered not to do), please advise and please provide authorization for the apartment maintenance staff to move those items into the storage room which is assigned to the apartment (not the 4th floor storage room). Please note: Weinstein's position is that given the expiration of the lease - all items that remain in the storage rooms and on the balcony are in violation of the lease agreement - **you must immediately remove all of your belongings from Weinstein property to avoid Weinstein seeking legal remedies available to it under the lease.**

With respect to the items which are located at the Reign facility, you have been made aware since October 3 that all of those can be returned to you (and this has been addressed on several other occasions as well). You did not respond to that information initially - but now it appears that you do not want the items returned at this time, and you do not want the items cleaned at this time (which as you are aware - when you have repeatedly requested no cleaning be done and requested assurance that it has not - you have been told repeatedly that no cleaning has taken place given your request that this not occur but that if you authorize the cleaning, this will be at no charge to you). You have also been previously advised that Reign is not a long-term storage facility. Therefore - you need to decide: do you want the items returned at this time (not yet cleaned) or do you want the items cleaned (and then returned to you). Your decision in this regard will dictate the logistics involved and as such, once you have provided that decision - we will update you as to the logistics associated with the choice you have made (and as you are aware- either choice require you to provide an address to which the items can be delivered).

With respect to the cleaning process - we do not have that specific information, as we are not mold remediators or property restoration professionals. We will request that Weinstein obtain information from Reign which provides insight to the process, and upon receipt, that information will be provided to you.

With respect to your questions regarding insurance matters, I previously told you that we were checking with Weinstein regarding whether there are other applicable insurance policies and to the extent such exist, those will be produced. Please note- we are not coverage attorneys and can provide no information or opinion as to coverage.

On a related matter- again, please produce the entirety of the renter's insurance policy you had with State Farm.

Finally: After the Temporary Restraining Order, your key was used to access the apartment unit, on October 7, 2025. After the Temporary Injunction was entered, your key was used to access the apartment unit, on October 21. As to each of these dates, please provide an explanation as to why you entered your apartment and/or permitted someone else to enter your apartment, using your key.

Regards,

Michelle Sortor

Michelle S. Sortor
Wentz & Zavarelli, L.L.P.
3120 Sabre Drive, Suite 170
Southlake, Texas 76092

(469) 665 – 9100 – Telephone
(469) 262 – 2078 – Direct Line
(469) 665 – 9106 – Facsimile

From: Copeland, Katie <K.M.COPELAND@tcu.edu>
Sent: Wednesday, October 29, 2025 2:12 PM
To: Michelle Sortor <msortor@wandzlaw.com>; Glynis Zavarelli <gzavarelli@wandzlaw.com>
Cc: Amye Brochstein <Amye.Brochstein@phly.com>
Subject: Request for Confirmation on Storage, Preservation of Belongings, and Insurance Coverage

Dear Ms. Zavarelli and Ms. Sortor,

I wanted to follow up to ensure there's clear understanding regarding my personal belongings from Unit 2145.

As I understand it:

- Reign Restoration currently has custody of the items that were packed and removed from my apartment, and they have held off on any cleaning or remediation pending my authorization. (I might be inclined to authorize it, but I've been waiting for a response regarding how that

process works.)

- There are also remaining items stored on-site, as well as some belongings still on my balcony and in a separate storage unit that was already in my name.

Because the apartment and its contents have been declared contaminated, I need written assurance that none of my belongings will be cleaned, moved, altered, or disposed of without my explicit consent or a court order. I also need confirmation that all storage arrangements are secure and under proper environmental conditions until I'm able to safely inspect or relocate the items.

Additionally, it's my understanding that Weinstein's insurance coverage may include contents, remediation, or storage-related protection for situations like this. Could you please confirm whether that coverage has been activated or whether a claim has been made, and if not, explain why?

I'm trying to make informed decisions about next steps, and having this clarity will help me move forward appropriately.

Thank you,

Katie Copeland

(817) 789-8498

K.M.Copeland@tcu.edu